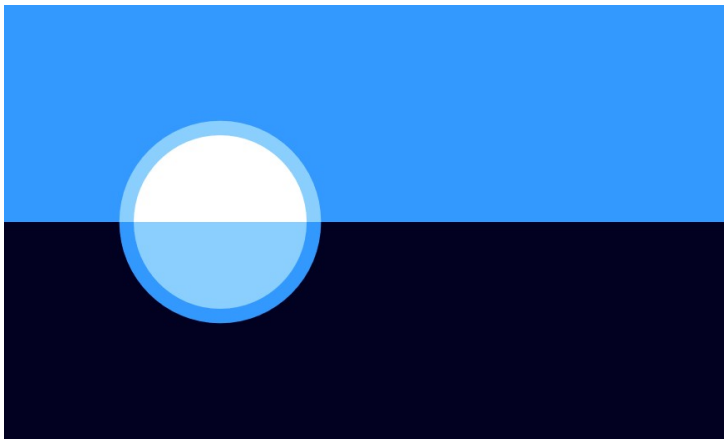

THE REPUBLIC OF CORTESIA DEL MAR

OFFICIAL CONSTITUTION

Amended — February 2026

We lay down a pathway to a horizon of boundless bridges, each which our Nation must cross in its ever-winding journey forth.

BrickWallGaming

IceCarim

ComradePotatoe

Useret

Complexii

VeddGoldgard

ItsAlreadyGold

Yodabird19

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PREAMBLE

We, the people of Cortesia Del Mar,

with wisdom wrought wilful ways beginning
a bright dawn reaped upon this journey far,
set anchor for welfare's underpinning:
a constitution built, that end to serve.

Large the basket, and all must equal fill;
the common weal secure by common verve,
in winter's warmth and summer's shivers still.

Replete with goodwill and peaceful intent
shall we befriend those wed to lands beyond
in cast for comity carved of consent.

Resilience a sturdy obsidian blade,
honed sharp by experience's whetstones,
scorching infernos slashed to quiet shade.

If horizons shall herald crossbones,
arms, a brute reserved, defend the land –
moonlit course: wax as enemies do wane –
but arms, despite, more lend a helping hand.

Fields of flowering, flourish in contain,
destined peace and tranquillity in store,
forged firmly by principles obstinate:
democracy, liberty – evermore.

Bearing sought from none but collective writ,
our heart's star an indomitable guide,
progress, a seed sown with soft, patient care.

Tales won with weary walk through the world wide,
unknowns to learn and adventures to share.

Darkness looming shall find it all for nought,
for night gives way to day, however fought.

ARTICLE I

FOUNDING PROVISIONS

1. Nature of the Republic

(1) The Republic of Cortesia Del Mar is a unitary, sovereign state.

(2) The Republic is founded on a commitment to realise and advance the values that underlie a free, peaceful, and democratic society, including equality, human dignity, civil suffrage, humanity, inclusiveness, liberty, secularism, accountability, justice, and the rule of law.

(G: 1) "Fundamental values" means the values referred to in Section 1(2).

2. Constitutional supremacy

(G: 2) "Conduct", unless the context requires otherwise, means an act or omission.

(1) This Constitution is the supreme law of the Republic of Cortesia Del Mar. Any law or conduct inconsistent with it is invalid to the extent of the inconsistency.

(2) The obligations imposed by this Constitution must be fulfilled without unreasonable delay.

3. Protection of the constitutional order

(1) The people of Cortesia Del Mar have the right, by any appropriate means —

(a) to resist any effort to diminish the constitutional order of the Republic; and

(b) to restore the constitutional order from any effort to diminish it and any incidental effect of such an effort.

(2) If no viable lawful means are available to resist an effort to diminish the constitutional order or to restore the constitutional order, appropriate means in Subsection (1) may include the necessary use of force.

4. Hierarchy of laws

(G: 3) "National legislation" includes any statutory instruments made either under this Constitution or an enactment by the National Forum.

(1) The hierarchy of laws subsidiary to this Constitution is ordered below:

(a) Decisions of the Supreme Court concerning—

(i) the interpretation or application of this Constitution; or

(ii) the consistency of other laws with this Constitution.

(b) National legislation.

(c) Decisions of the Supreme Court falling outside the scope of Subsection (a).

(d) Decisions of the Common Court.

(e) Any other law.

(2) To the extent a lower-listed law in Subsection (1) is inconsistent with a higher-listed law, the higher-listed law prevails. The inconsistent extent of the lower-listed law is not invalidated unless it has also been declared unconstitutional, but becomes inoperative as long as the inconsistency remains.

(3) A provision of this Constitution protecting a right or interest may only be directly applied to the extent that the laws listed in Subsection (1) do not give appropriate effect to that right or interest.

5. Nationality

(1) Cortesian nationality is held by permanent residents and citizens.

(2) Only citizens are accorded civil suffrage, the nature and extent of which is set out in Section 11; in every other respect, permanent residents and citizens have the same rights, benefits, and duties from holding Cortesian nationality.

(G: 4) *"Person" means a natural person.*

(3) Only persons may hold Cortesian nationality; if a person holds Cortesian nationality across multiple digital identities, all those identities are considered the same national under Cortesian law.

(4) National legislation must be enacted in accordance with this Section to provide for the acquisition, loss, and restoration of both permanent residency and citizenship.

(5) National legislation contemplated in terms of Subsection (4) must—

(a) accord due regard to the distinction between permanent residency and citizenship set out in Subsection (2) in providing for their respective acquisition, loss, and restoration; and

(b) reflect the following principles:

(i) Transparency, responsiveness, and accountability in the administration of rights or interests in Cortesian nationality.

(ii) The need for uniform standards and procedures to regulate the administration of rights or interests in Cortesian nationality.

(iii) The need for access to judicial review of administrative decisions adversely affecting rights or interests in Cortesian nationality, in order to ensure the procedural fairness of such decisions.

(6) Appendix I is operative to the extent that national legislation does not provide completely for the acquisition, loss, and restoration of permanent residency and citizenship.

6. National identity

(1) The capital city of the Republic must be designated through a resolution adopted by the National Forum with the support of at least two-thirds of the votes cast by its members, and may be changed in the same manner.

(2) The capital city is the seat of the national executive, legislature, and judiciary.

(3) A national referendum decided through the votes cast by a majority of citizens may designate—

(a) a national anthem;

(b) a national motto;

(c) a national coat of arms; and

(d) any other national symbol whose designation is not otherwise provided by law.

(4) The official language of the Republic is English.

(5) The Republic has two national flags; one is flown during peacetime, and the other is flown during wartime. The flags are described and depicted in Appendix II.

END OF ARTICLE I

ARTICLE II

CHARTER OF RIGHTS

7. Application of rights

(1) This Charter of Rights is the foremost instrument for the realisation and advancement of the Republic's fundamental values and the propagation of their benefits and protections.

(G: 5) *"State institution" means any institution exercising a public power or performing a public function.*

(2) The rights in this Charter apply to all law, and bind—

(a) every State institution; and

(b) every person and juristic entity to the extent this is appropriate, considering the nature of the rights and any duties they impose.

(3) The State must respect, protect, advance, and fulfil the rights entrenched in this Charter.

(G: 6) *"Mutatis mutandis" means "with the necessary changes being made".*

(4) A juristic entity is entitled, *mutatis mutandis*, to the rights entrenched in this Charter to the extent required by the nature of the rights and the nature of that entity.

(5) The entrenchment of certain rights in this Charter neither precludes nor relegates the existence of other rights consistent with it elsewhere in the law, including those necessarily inferred from a provision of this Constitution.

(6) National legislation may be enacted to give effect to the rights in this Charter where applicable and may extend the benefits and protections afforded by the rights in this Charter.

8. Interpretations concerning rights

(1) The rights entrenched in this Charter must be interpreted in a way that advances the ideal of a free, peaceful, and democratic society based on the fundamental values specified in Section 1(2).

(2) Where possible, any law outside of this Charter, including elsewhere in this Constitution, must be interpreted in a way that advances the spirit, purport, and objects of this Charter.

(3) A court may make use of any persuasive legal source consistent with the ideal of a free, peaceful, and democratic society based on the fundamental values specified in Section 1(2) to inform any interpretation in terms of this Section.

9. Rights for equality

(1) Everyone is equal before and under the law, which entails—

(a) the right to equal benefits, protections, and opportunities from the law; and

(b) equal responsibilities from the law in equal circumstances.

(2) Everyone has the right not to be discriminated against, directly or indirectly, on the basis of race, colour, ethnic or social origin, nationality, sex, gender, sexual orientation, physical or mental health, disability, age, marital status, religion, belief, conscience, language, culture, or wealth, or on any other analogous basis.

(3) Differential treatment on any of the bases specified in Subsection (2), or on any recognised analogous basis, is presumed to be discrimination. This presumption may be refuted only if such treatment is demonstrated to constitute a reasonable and justifiable limitation on Subsection (2) in terms of Section 27.

10. Rights for human dignity

(1) Everyone has the right to inviolable dignity, which must be respected and protected, in recognition of the infinite worth inherent to every person and their honour and reputation.

(2) No one may be subjected to cruel, inhuman, or degrading treatment or punishment.

(3) No one may be held in slavery or servitude.

11. Rights for democracy

(1) Every citizen has the right—

(a) to vote in free and fair—

(i) elections for any elected public office; and

(ii) national referendums;

(b) to stand in an election for any elected public office; and

(c) to hold office if elected.

(G: 7) Subsection (2) has been repealed by the Third Constitutional Amendment, 2024.

(2) [Repealed]

(G: 8) Subsection (3) has been repealed by the Third Constitutional Amendment, 2024.

(3) [Repealed]

(4) The formation of political parties is prohibited.

(5) Every citizen has the right to meaningfully participate in the conduct of State affairs, both directly and through their elected representatives.

(6) Except where this Constitution specifies otherwise, no law may limit the right to stand in an election for an elected public office established in this Constitution.

12. Rights for basic needs

(1) Every national has the right to sufficient food or a source of sufficient food.

(2) Every national has the right to State provision of—

(a) sufficient equipment for protection from basic hostile creatures;

(b) transportation vehicles, such as a boat or minecart; and

(c) access to a public, self-replenishing water source.

(3) The President, or a Cabinet member designated by them, must issue a statutory instrument specifying, in accordance with the means of the State, the items that constitute sufficient equipment as contemplated in Subsection (2)(a). Such an instrument must be amended whenever this is necessary to reflect the means of the State.

13. Right to housing

(1) Every national has the right to a provision of immovable property by the State that constitutes—

(a) adequate housing; or

(b) land on which adequate housing can be constructed.

(2) Adequate housing entails a sheltering enclosure capable of containing at least a crafting table, furnace, chest, bed, and sufficient lighting as to prevent the spawning of hostile creatures.

14. Rights for safety and security

(1) Everyone has the right—

(a) to physical and mental integrity; and

(b) to the safety and security of their property and possessions.

(2) In the absence of a viable lawful alternative, any reasonable conduct necessary to protect, or legitimately intended to protect, a right in Subsection (1) is not unlawful, even if such conduct is unlawful otherwise.

15. Rights for property

(G: 9) *"Property" includes immovable property, movable property, and any other property recognised by law.*

(1) Everyone has the right, both alone and in association with others—

(a) to acquire and hold rights in property; and

(b) to dispose of such rights to the extent this is permitted by the nature of the rights.

(2) Rights in property include exclusive possession and any other rights recognised by law.

(3) Property may be expropriated only by the State for a legitimate public interest in terms of a law of general application.

(4) Subsection (3) does not preclude expropriation that results in the transfer of property from one private owner to another.

(5) Everyone has the right to receive an equitable compensation before any expropriation of their property in terms of Subsection (3) is effected, taking into account the public interest and the interests of those affected by the expropriation. If the amount of compensation is disputed, a competent court may be approached to decide the amount.

(6) Subsection (5) does not preclude expropriation without compensation if this is equitable.

16. Rights for liberty

(1) Everyone has the right—

(a) to freedom of expression, opinion, thought, conscience, and belief, which includes—

(i) freedom of the press and other media;

(ii) artistic and academic freedom; and

(iii) honest comment through the means in Subparagraphs (i) and (ii);

(b) to engage in, together with others—

(i) the use of the language of their choice;

(ii) the practise of their beliefs; and
(iii) the enjoyment of their culture;

(c) to peacefully dissent, protest, and petition;

(d) to economic freedom, which includes freedom—

(i) to engage in trade or commerce in a manner of their own choosing; and

(ii) to practise an occupation of their choice; and

(e) to form or participate in associations.

(2) The rights in Subsection (1) do not extend to—

(a) conduct that—

(i) seriously violates a right entrenched in this Charter;

(ii) incites a serious imminent violation of a right entrenched in this Charter;

(iii) promotes hatred on any of the bases specified in Section 9(2); or

(iv) propagates false information that incites or results in, or is likely to incite or result in, serious public unrest; and

(b) inessential financial contributions to political causes.

(3) Everyone has the right to freedom of movement, including the right—

(a) freely to enter and leave the Republic; and

(b) to remain in public spaces within the Republic.

(4) Subject to Section 27(1), the State may restrict or regulate movement contemplated in the right in Subsection (3)—

(a) to protect legitimate interests of national security or public safety in compliance with Section 27(1); or

(b) to enable lawful arrests, detentions, or imprisonments.

(5) Every national has the right to choose their place of residence.

(6) No one may be compelled to participate in military activities.

17. <u>Rights for access to information</u>

(1) Everyone has the right—

(a) to seek, receive, and disseminate information and ideas; and

(b) to access any information required for the exercise or protection of any rights.

(2) Every national has the right—

(a) to access any information held by the State;

(b) to be promptly and adequately notified about any State conduct that may affect their rights, legal obligations, or interests recognised by law; and

(c) to easily access all the laws of the Republic.

(3) The rights in Subsection (1) and Subsection (2)(a) and (b) do not extend to disclosures with a reasonable likelihood to seriously impact a legitimate interest of national security, public safety, or personal privacy.

(4) National legislation must be enacted to provide for the exercise and regulation of the rights in Subsection (2).

18. Prohibition of censorship

The State may not abridge the exercise of any right through censorship.

19. Rights for privacy

(1) Everyone has the right to remain digitally anonymous.

(2) Everyone has the right to privacy and the right not to be subjected to any interference with their privacy arbitrarily or without equitable procedures in terms of the law, which entails the right—

(a) not to have the confidentiality of their private communications violated; and

(b) not to be searched or have their property or possessions searched or seized.

20. Right to a secular State

Everyone has the right to a State whose affairs remain impartial in respect of religion.

21. Rights for the rule of law

(1) No one may be deprived of their freedom, including through arrest, detention, imprisonment, or exile, arbitrarily or without equitable procedures in terms of the law.

(2) Criminal offences and civil wrongs may only be defined, and punishment and remedies thereof may only be prescribed, in terms of national laws.

(3) No one may—

(a) be convicted on account of conduct that was not a criminal offence under national law at the time of its commission; or

(b) be ordered to provide remediation pursuant to a lawsuit on account of conduct that was not a civil wrong at the time of its commission.

22. Rights for administrative justice

(1) Everyone has the right to procedural fairness from any authority entitled to make a determination in respect of their rights, legal obligations, or interests recognised by law.

(2) Anyone whose rights, legal obligations, or interests recognised by law have been adversely affected by a determination in terms of Subsection (1) has the right to apply for judicial review of that determination.

23. Rights for access to courts

(1) Everyone has the right to approach a competent court to decide any dispute that—

(a) can be resolved through the application of Cortesian law; and

(b) engages Cortesian jurisdiction.

(2) Anyone subjected to a violation of, or threat to, a right or any other interest recognised by law has the right to receive an effective and equitable remedy from a court order.

(3) Everyone has the right to bring a lawsuit in terms of Subsection (1)—

(a) against another person;

(b) against a juristic entity; or

(c) against the State or its institutions.

(4) Anyone with a direct or substantial interest in an ongoing matter before a court has the right to apply to intervene in that matter.

(5) Anyone may approach a court in terms of Subsection (1) or (4) acting—

(a) on their own behalf;

(b) on behalf of another person, with that person's consent;

(c) as a member of, or on behalf of, a group or class of persons; or

(d) in the public interest.

(6) Any party to a matter decided by the Common Court has the right to apply to appeal the decision.

24. Rights for persons arrested, detained, or charged

(1) Anyone who is arrested or detained has the right—

(a) to remain silent and not to be compelled to incriminate themselves;

(b) to prompt legal representation and advice, including the right—

(i) to retain, consult, and instruct counsel of their choice; or

(ii) to have the State assign them counsel at State expense whose interests do not conflict with that assignment, and whom they may consult and instruct;

(c) to be immediately informed on arrest or detention—

(i) of the reasons for the arrest or detention;

(ii) of their rights in Paragraphs (a) and (b); and

(iii) of the consequences of forfeiting their right to remain silent;

(d) to be charged or released without unreasonable delay;

(e) to be released under reasonable conditions while awaiting to be charged or tried if the interests of justice permit this; and

(f) to challenge the lawfulness of their detention by way of *habeas corpus* and to be released immediately if the detention is found unlawful.

(2) Anyone who is charged for an alleged criminal offence retains the rights in Subsection (1), *mutatis mutandis*, and has the right—

(a) to be promptly informed of the nature of, and reasons for, the charge; and

(b) to stand trial without unreasonable delay.

25. Rights for fair trial

(1) Anyone standing trial for an alleged criminal offence has the right—

(a) to be tried fairly and publicly before a competent court which is independent and impartial;

(b) to be presumed innocent unless found guilty on account of the criminal offence beyond a reasonable doubt;

(c) to remain silent and not to be compelled to incriminate themselves;

(d) to be present at their trial and to testify if they so desire;

(e) to fair representation, including the choice—

(i) to represent themselves;

(ii) to retain, consult, and instruct counsel of their choice; or

(iii) to have the State assign them counsel at State expense whose interests do not conflict with that assignment, and whom they may consult and instruct;

(f) to change their representation at any time during the trial;

(g) to be afforded adequate time to prepare a defence;

(h) to present a full defence, including the right—

(i) to be informed of all inculpatory evidence in sufficient detail to form a response;

(ii) to be informed of all exculpatory evidence in sufficient detail to utilise fully in their defence; and

(iii) to adduce and challenge evidence;

(i) to have their trial begin and end without unreasonable delay; and

(j) to the benefit of the most favourable interpretation when an applicable law is ambiguous.

(2) No one may be tried in respect of an instance of conduct for which they have already been finally acquitted or convicted, or pardoned.

(3) A defendant in any lawsuit has the right—

(a) to be informed of the claims against them in sufficient detail to form a response; and

(b) to be given adequate time to prepare a defence.

(4) The parties to any lawsuit have the right—

(a) to a fair and public hearing before an independent and impartial court;

(b) to represent themselves or to retain, consult, and instruct counsel of their choice;

(c) if required by the interests of justice, to have the State assign them counsel at State expense whose interests do not conflict with that assignment, and whom they may consult and instruct; and

(d) to present their full claims, if the party is the plaintiff, or to present their full defence, if the party is the defendant, including the right—

(i) to be informed of all evidence to be used by an adverse party in the trial in sufficient detail to form a response; and

(ii) to adduce and challenge evidence.

(5) A trial may only be held *in camera* if this is required by legitimate and substantial security or privacy interests.

(6) No one may be brought to trial on account of a trivial matter with negligible consequences.

(7) National legislation must be enacted to provide for fair criminal and civil procedures, including rules for the admissibility of evidence, and aggravating and mitigating factors in criminal sentencing.

26. Rights for fair sentencing

(1) Anyone convicted for a criminal offence has the right to the benefit of the lesser punishment prescribed for the criminal offence if the punishment for the criminal offence has been varied between the time of its commission and the time of sentencing.

(2) Any punishment prescribed by law for a criminal offence must be proportional to the nature and severity of that offence.

(3) When sentencing a person convicted for a criminal offence, a court must order an equitable punishment, taking into account all relevant factors in the context, including the severity of the instance of conduct constituting the offence and any aggravating or mitigating factors.

(4) A determination of proportionality or equity in terms of Subsection (2) or (3) must take into account the objects of societal protection, deterrence, retribution, restoration, and rehabilitation.

27. Limitation of rights

(1) A right entrenched in this Charter, or recognised in terms of Section 8(3), may only be limited in terms of a law of general application to the extent that the limitation is demonstrably reasonable and justifiable in a free, peaceful, and democratic society based on, and committed to the realisation and advancement of, the fundamental values specified in Section (1)(2), considering—

(a) whether the limitation is rationally connected to its purpose;

(b) the nature of the right affected—

(i) in general; and

(ii) to the extent it is limited;

(c) the relation between the nature of the right affected in general and the nature of that right to the extent it is limited;

(d) the nature, impact, and extent of the limitation;

(e) the importance of the purpose of the limitation;

(f) the relation between the importance of the purpose of the limitation and the importance of the right to the extent it is limited;

(g) whether less restrictive means to achieve the purpose of the limitation are available; and

(h) any other relevant factor in the context.

(2) Except as provided in Subsection (1) or elsewhere in this Constitution, a right entrenched in this Charter, or recognised in terms of Section 7(5), may not be limited.

END OF ARTICLE II

ARTICLE III

VOTING PROVISIONS

28. Democratic decision-making

(1) This Article applies to any voting in terms of law, including—

(a) national referendums;

(b) voting in the National Forum or in one of its committees; and

(c) voting in the Cabinet.

(2) The voting systems and procedures in this Article constitute the standard for democratic decision-making in the Republic.

29. Facilitation of voting

(1) The Minister of the Interior is responsible for implementing and maintaining uniform methods in accordance with the law to effectively facilitate the initiation of voting, the casting of votes, and the collection and counting of votes.

(2) Any method implemented to facilitate the casting of votes must be easy to utilise.

30. Rights in voting

(1) Any person entitled to cast a vote on a particular question has the right—

(a) to change or rescind their vote at any point before the conclusion of voting on the question; and

(b) to abstain from voting.

(2) No person may interfere with democratic functions or compel a person to cast a certain vote.

31. Voting systems

(G: 10) "Choice", in reference to voting, does not include abstention.

(1) The voting system prescribed for the decision of any question is dependent on the number of choices to decide from, the number of winners possible, and the number of votes required for a choice to win. This determination must be made as follows:

(a) Single-winner standard voting is prescribed if only one choice may win by voting and—

(i) there are exactly two choices to decide from; or

(ii) the number of votes required for a choice to win is more than a simple majority.

(b) Multiple-winner standard voting is prescribed if—

(i) more than one choice may win by voting; and
(ii) the number of votes required for a choice to win is more than a simple majority.

(c) Single-winner instant-runoff voting is prescribed if—
(i) only one choice may win in by voting;
(ii) there are more than two choices to decide from; and
(iii) the number of votes required for a choice to win is a simple majority.

(d) Multiple-winner instant-runoff voting is prescribed if—
(i) more than one choice may win by voting;
(ii) there are more than two choices to decide from; and
(iii) the number of votes required for a choice to win is a simple majority.

(2) National legislation may provide for other voting systems, with a view to effectively realise democracy, in order to facilitate the decision of any question falling outside the scope of Subsection (1).

32. Modifications to extant voting

(1) If, according to an objective determination, it becomes manifest that extant voting on a particular question will have no practical consequences, such voting may be terminated by any authorised person.

(2) If, according to an objective determination, it becomes manifest that a choice available in extant voting on a particular question is no longer capable of being fulfilled should the choice win, any authorised person may make such changes as are appropriate, fair, and consistent with democracy, including extending the duration of such voting, to resolve the situation as if that choice was at no time available in such voting.

(3) If an inaccuracy in the conduct of extant voting on a particular question becomes manifest, any authorised person may make such changes as are appropriate, fair, and consistent with democracy, including extending the duration of such voting, to resolve the situation as if the inaccuracy was at no time existent in such voting.

(4) Any modification to voting on a particular question in this Section must be announced in appropriate detail by an authorised person to all persons entitled to cast a vote on that question.

33. Single-winner standard voting

(1) When single winner standard voting is used, any person entitled to do so may cast a vote for one of the available choices.

(2) In single winner standard voting, the choice that obtains the required number of votes to win is the winner.

34. Multiple-winner standard voting

(1) When multiple-winner standard voting is used, any person entitled to do so may cast a vote for as many available choices as may win.

(2) The result of a question decided by multiple-winner standard voting is determined as follows:

(a) If no more choices obtain the required number of votes to win than the number of choices that may win, any choice that obtains the required number of votes to win is a winner.

(b) If more choices obtain the required number of votes to win than the number of choices that may win, the choices that have obtained the most votes, ordinally until the number that may win, are the winners.

35. Single-winner instant-runoff voting

(1) When single-winner instant-runoff voting is used, any person entitled to do so may cast a vote by ranking as many of the available choices as they desire; the choice they most prefer must be ranked first, and only one choice may be selected at each ranking.

(2) The result of a question decided by single-winner instant-runoff voting is determined as follows:

(a) If one choice is ranked first by at least a simple majority of voters, that choice is the winner.

(b) If no choice wins in terms of Paragraph (a), the choice ranked first by the fewest voters is eliminated.

(c) Whenever a choice ranked by a voter is eliminated, any choices ranked after that choice by the voter increase by one rank.

(d) If Paragraph (b) cannot be applied due to a tie, the tie must be decided in terms of Section 37(2), after which Paragraph (b) must be applied according to the decision of the tie.

(e) If Paragraph (b) results in the elimination of all the choices ranked by a voter, that voter is considered to have abstained.

(f) Paragraphs (a) and (b) are applied in repetition sequentially until a choice wins in terms of Paragraph (a).

36. Multiple-winner instant-runoff voting

(1) When multiple-winner instant-runoff voting is used, any person entitled to do so may cast a vote by ranking as many of the available choices as they desire in the following manner:

(a) The choice or choices they most prefer must be ranked first.

(b) As many choices as may win may be selected at the first ranking.

(c) Only one choice may be selected from the second ranking onwards.

(2) The result of a question decided by multiple-winner instant-runoff voting is determined as follows:

(a) The choice ranked first by the fewest voters is eliminated.

(b) Whenever a choice ranked by a voter is eliminated, any choices ranked after that choice by the voter increase by one rank.

(c) If Paragraph (a) cannot be applied due to a tie, the tie must be decided in terms of Section 37(2), after which Paragraph (a) must be applied according to the decision of the tie.

(d) If Paragraph (a) results in the elimination of all the choices ranked by a voter, that voter is considered to have abstained.

(e) Paragraph (a) is applied repeatedly until only the number of choices that may win remain. These choices are the winners.

37. Deciding ties

(1) If, after voting, resolving a tie is necessary to decide a question, the tie must be resolved as follows, unless otherwise specified by law:

(a) The period for voting may be extended by any authorised person for no more than 24 hours if—

(i) not all persons entitled to do so have cast a vote; and

(ii) there is a reasonable expectation that additional votes will be cast.

(b) If Paragraph (a) does not apply or fails to resolve the tie, the President must cast a deciding vote, notwithstanding any previous vote they have cast.

(2) Ties anticipated in Section 35(2)(d) or Section 36(2)(c) must be decided as follows:

(a) If the sum of the number of voters who selected each tied choice is less than the number of voters who ranked any other choice first, all the tied choices are eliminated.

(b) If Paragraph (a) does not apply, the tied choice with the fewest voters selecting it at the next ordinal ranking where the relevant choices are not also tied is eliminated.

(c) If Paragraphs (a) and (b) do not apply or fail to resolve the tie, the duration of the vote may be extended by any authorised person for no more than 24 hours if—

(i) not all persons entitled to do so have cast a vote; and

(ii) there is a reasonable expectation that additional votes will be cast.

(d) If Paragraphs (a), (b), and (c) do not apply or fail to resolve the tie, the President must cast a deciding vote, notwithstanding any previous vote they have cast.

38. Early finalisation of decisions

(1) Voting on a particular question may be concluded before its duration lapses if—

(a) enough votes are cast to render its results objectively certain;

(b) no debate concerning the question is ongoing;

(c) a reasonable opportunity has been given for persons entitled to cast a vote on the question to reconsider their votes or abstentions.

(2) Any authorised person may conclude voting on a particular question in terms of Subsection (1) by making an announcement of such conclusion, which mentions the fulfilment of the conditions in that Subsection, to all persons entitled to cast a vote on the quest

(3) Subsection (1) may not be applied to—

(a) elections;

(b) national referendums;

(c) voting on the passage of a bill; or

(G: 11) Paragraph (d) has been repealed by the Fourth Constitutional Amendment, 2025.

(d) [Repealed]

(e) any other voting excluded from the application of that Subsection in terms of law.

39. Spoilt votes

(1) A vote cast on a question is invalid if the manner in which it was cast—

(a) is inconsistent with the procedure for the voting system used to decide that question; and

(b) is incapable of being reconciled with the procedure for the voting system used to decide that question without a subjective interpretation of the desire of the person who cast such a vote.

(2) A person who casts an invalid vote on a question is considered not to have voted for the purposes of that question.

40. Administration of voting

(1) Anyone authorised to open voting on a certain question is also authorised to administer such voting.

(2) Except in respect of voting opened by the Chief Justice, a Cabinet member may intervene in the administration of voting when this is necessary to correct a deviation from legally prescribed procedures.

(3) The person who has opened voting on a certain question—

(a) must ensure—

(i) that the question submitted for voting is clearly expressed;

(ii) that the applicable voting system is adhered to; and

(iii) that the correct choices are available in the voting;

(b) is responsible for providing clear instructions on casting votes in compliance with the applicable voting system; and

(c) must perform any responsibilities assigned to them by this Section in respect of anticipated contingencies.

41. Counting of votes

(1) Any person responsible for declaring the results of voting on a certain question—

(a) must ensure that the counting of votes is performed impartially and in accordance with the applicable voting system; and

(b) must report in sufficient detail to all persons entitled to cast a vote on that question—

(i) the number of votes cast in support of each choice in the voting, and, where applicable, at each ranking; and

(ii) the way in which the results of the voting were arrived at.

(2) Any irregularities in the counting of votes must be reported to the person responsible for counting those votes. If the irregularities are not satisfactorily resolved, a competent court may be approached to adjudicate the matter.

42. Petitions

The Minister of the Interior must designate a public channel, which must be easy for all citizens to access and utilise, to facilitate petitioning and the collection of signatures for petitions.

43. Advisory referendums

(1) An advisory referendum may be held on any question at the instance of—

(a) the President, by proclamation; or

(b) a petition with the support of at least one-quarter of citizens.

(2) In order to allow for deliberation, at least 24 hours must elapse between a proclamation or petition for an advisory referendum and the opening of voting on that referendum.

(3) Voting on an advisory referendum may be opened to all citizens by—

(a) the President if the advisory referendum is initiated at the instance of their proclamation;

(b) any Cabinet member if the advisory referendum is initiated at the instance of a petition which does not designate a specific person to open voting; or

(c) a person specifically designated by the initiating petition.

(4) The results of an advisory referendum are non-binding.

44. Commandeering of a public power

(1) The citizenry may commandeer any public power for a distinct and solitary exercise of that power in the manner set out in this Section.

(2) Subject to Subsection (3), a national referendum on whether to commandeer and exercise a public power is held whenever a petition for this purpose receives the support of at least one-quarter of citizens.

(3) Within 14 days of a previous petition to initiate a national referendum to commandeer and exercise a public power, a petition to initiate such a referendum to commandeer and exercise the same power for the same purpose requires the support of two more citizens than was required for the previous petition to take effect.

(4) A petition contemplated in Subsection (2)—

(a) must clearly specify in sufficient detail—

(i) the content and scope of the public power which it proposes to commandeer;

(ii) the manner in which the power will be exercised; and

(iii) the purpose for which it proposes to commandeer and exercise the power; and

(b) must designate a person, who has agreed to be named for this purpose—

(i) to open voting on the corresponding national referendum; and

(ii) to declare the results of the voting.

(5) The person designated by a petition lodged pursuant to Subsection (2) must open voting to all citizens in a national referendum on whether to commandeer and exercise the public power in terms of the petition once the petition has received the requisite support. This person must ensure that such voting complies with the following:

(a) Only two choices, one to support the commandeering and exercise of the public power and one to oppose this, must be available in the voting.

(b) The procedure for single-winner standard voting must be used.

(c) Voting must—

(i) be conducted by secret ballot; and

(ii) last for 48 hours.

(6) The results of a national referendum contemplated in Subsection (5) must be declared by the person designated for this purpose as soon as possible after the close of voting. The relevant public power may be commandeered and exercised in the terms set out by the corresponding petition if, on conclusion of the referendum, the commandeering and exercise of that public power receives the support of at least three-quarters of votes cast by citizens.

(7) The Supreme Court must oversee the counting of the votes cast in a national referendum contemplated in Subsection (5).

END OF ARTICLE III

ARTICLE IV

NATIONAL LEGISLATURE

45. National Forum

(1) The National Forum is the national legislature. It is elected to represent the citizens of the Republic and is to this end responsible for—

(a) ventilating issues of public importance;

(b) considering bills; and

(c) overseeing executive performance.

(2) The National Forum consists of Members of the Forum.

(3) The powers and functions of the National Forum must be exercised and performed in accordance with this Constitution, and in a manner that effectively realises public participation and representative democracy.

(4) Subject to Subsection (3), the National Forum may determine and control its internal arrangements, proceedings, and procedures, and may adopt rules for this purpose.

(5) There is no restriction on the number of Members of the Forum that may be elected.

(6) The National Forum—

(a) must consist of at least five members to be operative; and

(b) is in session whenever it is operative.

46. Transparency of the National Forum

(1) Subject to Subsection (2), the proceedings of the National Forum and its committees must be conducted in public.

(2) Closed sittings of the National Forum may only be held when they are necessary for the consideration of matters relating to legitimate and substantial security or privacy interests.

47. Immunities of Members of the Forum

(1) Members of the Forum may not be subject to civil or criminal liability either for anything they have said or for any vote they have cast in the performance of their functions in the National Forum or any of its committees.

(2) The immunities of Members of the Forum may not be extended beyond those provided in Subsection (1).

48. Motions

(1) Every Member of the Forum has the right to move a motion when this is applicable to initiate a National Forum activity.

(2) Unless this Constitution specifies otherwise, the National Forum may predetermine—

(a) thresholds of support that a motion must meet in order to take effect; and

(b) time limits after which a motion that has not met its required threshold of support lapses.

49. Decisions of the National Forum

(1) Except where this Constitution provides otherwise, any question before the National Forum is decided by a majority of the votes cast by its members.

(2) In order to allow for deliberation, at least 24 hours must elapse between the introduction of a question before the National Forum and any voting on that question.

(3) Subsection (2) does not apply if the President or the National Forum, by a motion with the support of at least one-third of its members, determines that a question before the National Forum requires an urgent decision.

(4) Except where this Constitution provides otherwise, or if the National Forum predetermines otherwise, any voting on a question before the National Forum must last for 24 hours.

(5) Votes on a question before the National Forum, including any question contemplated in this Constitution, must be taken by secret ballot if a motion for this purpose receives the support of at least one-third of Members of the Forum.

(6) A motion is not considered a question for the purposes of this Section.

50. Resolutions

(1) The National Forum may adopt a resolution—

(a) to exercise any of its powers falling outside of its legislative authority;

(b) to decide a question before it, unless this Constitution provides differently for the decision of that question;

(c) to express a position; or

(d) to determine and control its internal arrangements, proceedings, and procedures.

(2) Except where this Constitution provides otherwise, the National Forum may adopt a resolution with the support of a majority of the votes cast by its members. Resolutions may be repealed in the same way.

51. Committees of the National Forum

(1) The National Forum may establish a committee through a resolution adopted with the supporting vote of a majority of its members.

(2) A resolution adopted to establish a committee must provide for the composition, powers, functions, and duration of the committee.

(3) Committees of the National Forum—

(a) may only consist of Members of the Forum; and

(b) must consist of more than one member to be operative.

(4) Only powers or functions entrusted to the National Forum may be assigned to its committees. The National Forum may not assign to a committee any powers or functions whose exercise or performance requires a plenary sitting.

52. Legislative authority

(1) The National Forum is vested with the legislative authority of the Republic, which entails the power—

(a) to enact, amend, or repeal national legislation;

(b) to reject bills; and

(c) to initiate bills for the amendment of this Constitution.

(2) The legislative authority of the National Forum is subject only to this Constitution.

(3) National legislation may assign limited legislative powers to a State institution outside of the National Forum, where this is in the interests of the expedient and effective regulation of a matter, by authorising that State institution to enact, amend, and repeal statutory instruments in terms of the legislation.

(4) In assigning the power to enact, amend, and repeal a statutory instrument, national legislation must specify the nature, scope, and purpose of the assignment, and may specify appropriate conditions for the exercise of the power.

53. Preparation and introduction of bills

(1) Members of the Forum are responsible for preparing bills. In exercising this responsibility, they—

(a) may consult with any interested party;

(b) may receive representations from any interested party;

(c) must disclose to the National Forum—

(i) any consultations with foreign parties;

(ii) any consultations with parties not representing a personal or State interest; and

(iii) any representations received in terms of Paragraph (b);

(d) must consult with a Cabinet member if the contents of a bill are substantially connected or incidental to a matter within that Cabinet member's control; and

(e) must consult with a local government if the contents of a bill are likely to substantially affect the local government.

(G: 12) "Private Member" means a member of the National Forum who is not a member of the Cabinet.

(2) Any bill may be introduced in the National Forum by—

(a) a Cabinet member;

(b) a Committee of the National Forum; or

(c) a Private Member, provided the introduction of the bill is supported by at least one other Member of the Forum.

54. Consideration of bills

(1) The National Forum must maintain a schedule for the consideration of bills that have been introduced. Bills must be scheduled for consideration in the order of their introduction, unless a bill is prioritised by—

(a) the President, by proclamation; or

(b) the National Forum, by a motion with the support of at least one-third of its members.

(2) The National Forum must facilitate and take into account public comment on bills under its consideration.

(3) The National Forum may amend any bill in the process of considering it.

55. Subject matter of bills

(1) The title under which a bill is intended to be enacted must provide a clear conspectus of its subject matter or purpose.

(2) No bill is admissible unless all of its provisions are substantially connected or incidental to its main subject matter.

56. Ordinary bills

(1) An ordinary bill may be introduced to enact, amend, or repeal national legislation.

(2) The National Forum may not vote on an ordinary bill until—

(G: 13) Paragraph (a) has been repealed by the Fourth Constitutional Amendment, 2025.

(a) [Repealed]

(b) the final version of the bill has been made available for public comment for at least 24 hours.

(G: 14) Subsection (3) has been revised by the Fourth Constitutional Amendment, 2025.

(3) Any Member of the Forum may open voting in the National Forum on whether to pass an ordinary bill once the conditions in Subsection (2) have been met. Such voting must comply with the following:

(a) Only two choices, one to support the bill and one to oppose the bill, must be available in the voting.

(b) The procedure for single-winner standard voting must be used.

(G: 15) Paragraph (c) has been revised by the Fourth Constitutional Amendment, 2025.

(c) Voting must last for 24 hours.

(4) An ordinary bill lapses if—

(a) 14 days have gone by since the date of the introduction of the bill without a successful motion to open voting on the bill; or

(b) two-thirds of Members of the Forum have opposed a motion to open voting on the bill.

(5) An ordinary bill is passed by the National Forum if, on conclusion of the voting initiated in terms of Subsection (3), the bill receives the support of at least three-fifths of the votes cast by Members of the Forum.

57. Bills amending this Constitution

(1) No bill that has the effect of amending any of the following provisions may be introduced before the National Forum:

(a) This Subsection.

(b) Subsection (2).

(c) Subsection (6).

(d) Subsection (7).

(2) No bill that has the effect of diminishing the substantive content of any of the following parts of this Constitution may be introduced before the National Forum:

(a) Section 1;

(b) Section 2;

(c) Section 4; or
(d) Article II.

(3) The National Forum may not vote on whether to submit a bill amending this Constitution for a national referendum until—
(a) at least 72 hours have elapsed since the introduction of the bill, to allow for deliberation; and
(b) the final version of the bill has been made available for public comment for at least 48 hours.

(4) The Minister of the Interior must open voting to all citizens on whether to pass a bill amending this Constitution if a motion to submit the bill for a national referendum has received the support of a majority of Members of the Forum. The Minister must ensure that such voting complies with the following:
(a) Voting must commence at the start of one of the days below, with a higher listed day taking precedence:
(i) The next Saturday if this is within 72 hours of the passage of the motion to submit the bill for referendum.
(ii) The next Friday if this is within 72 hours of the passage of the motion to submit the bill for referendum.
(iii) The next day.
(b) Only two choices, one to support the bill and one to oppose the bill, must be available in the voting.
(c) The procedure for single-winner standard voting must be used.
(d) Voting must last for 48 hours.

(5) A bill amending this Constitution lapses if—
(a) 14 days have gone by since the date of the introduction of the bill without a successful motion to submit the bill for a national referendum; or
(b) two-thirds of Members of the Forum have opposed a motion to submit the bill for a national referendum.

(6) A bill amending Section 1, Section 2, Section 4, or Article II is passed if, on conclusion of national referendum initiated in terms of Subsection (4), it receives the support of at least three-quarters of the votes cast by citizens.

(7) A bill amending any provisions other than those specified in Subsection (6) is passed if, on conclusion of the national referendum initiated in terms of Subsection (4), it receives the support of at least two-thirds of the votes cast by citizens.

58. Rejection of bills

Any bill that is not passed on conclusion of a vote in terms of Section 56(5) or a national referendum in terms of Section 57(6) or (7), whichever of these is applicable to the bill, is rejected.

59. Signing of bills

(1) Whenever a bill is passed, it must be submitted to the President and the Vice President for their signatures. The President and the Vice President must sign the bill without unreasonable delay, unless either of them chooses to refer the bill to the Supreme Court in terms of Section (60).

(2) Once the President and Vice President have signed a bill, the bill is enacted on publication—

(a) as national legislation if it is an ordinary bill; or

(b) as a constitutional amendment if it is a bill amending this Constitution.

60. Referral of bills to the Supreme Court

(1) If either the President or the Vice President dispute the constitutional validity of all or part of a bill submitted to them for their signatures, and their reservations were expressed during the consideration of the bill, they may refer the bill to the Supreme Court for a decision on its constitutional validity in respect of their reservations.

(2) If the Supreme Court declares a bill referred to it in terms of Subsection (1) constitutionally valid in respect of all submitted reservations, the President and the Vice President must sign the bill without unreasonable delay.

61. Referral of recently enacted national legislation to the Supreme Court

(1) An application to the Supreme Court for an order declaring all or part of a piece of national legislation constitutionally invalid, on abstract review by that court, may be made within seven days of the date of the enactment of that legislation if the application is brought as a result of—

(a) a motion supported by at least one-third of Members of the Forum; or

(b) a petition supported by at least one-quarter of citizens.

(2) Any part of a bill that was referred by the President or the Vice President to the Supreme Court in terms of Section 57(1), and that has subsequently been found constitutionally valid by the Supreme Court, may not be the subject of an application in terms of Subsection (1) after that bill has been enacted.

(3) The Supreme Court may order that all or part of a piece of national legislation that is the subject of an application in terms of Subsection (1) is to be inoperative until the Court has decided the application if—

(a) the interests of justice require this; and

(b) the application has a reasonable prospect of success.

(4) Nothing in this Section precludes a challenge to the constitutional validity of national legislation in terms of Section 23(1) or (2).

62. Challenges to constitutional amendments

(1) The validity of a constitutional amendment may only be challenged through an application in terms of Subsection (2); any other application to challenge the validity of a constitutional amendment is inadmissible.

(2) An application to the Supreme Court for an order declaring all or part of a constitutional amendment invalid, on abstract review by that court, may be made within 30 days of the date of the enactment of that constitutional amendment if the application is brought as a result of—

(a) a motion supported by at least one-third of Members of the Forum; or

(b) a petition supported by at least one-quarter of citizens or at least four citizens, whichever is fewer.

(3) Any part of a bill that was referred by the President or the Vice President to the Supreme Court in terms of Section 60(1), and that has subsequently been found constitutionally valid by the Supreme Court, may not be the subject of an application in terms of Subsection (2) after that bill has been enacted.

(4) The Supreme Court may order that all or part of a constitutional amendment that is the subject of an application in terms of Subsection (2) is to be inoperative until the Court has decided the application if—

(a) the interests of justice require this; and

(b) the application has a reasonable prospect of success.

(5) The Supreme Court is confined to assessing a constitutional amendment against the provisions of Section 57 when deciding an application in terms of Subsection (2).

63. Publication of enactments

(1) The National Forum must ensure that all of its enactments are published in a manner easily accessible to the public. No enactment may be in force without such accessibility.

(2) Whenever this Constitution is amended, the full text must be published with all revisions incorporated in accordance with Appendix III.

64. Evidence before the National Forum

(1) The National Forum or any of its committees may request any person, juristic entity, or State institution to give evidence before it in order to assist in the performance of its functions.

(2) A request issued in terms of Subsection (1)—

(a) must be delivered to the relevant person, juristic entity, or State institution with written notice of, and reasons for, its issuance;

(b) may be refused by the recipient, unless—

(i) it cites a State official in their official capacity; and

(ii) it is specified in the written notice of the request that the official is compelled to comply with it; and

(c) must provide a reasonable timeframe for compliance with it in the context of its issuance.

(3) The National Forum may not prevent any person appearing before it from being assisted by counsel during their appearance.

(4) Any person appearing before the National Forum has the right at any time to refuse to give evidence or to cease giving evidence.

(5) The right in Subsection (4) does not extend to State officials appearing before the National Forum in their official capacity, except to the extent it protects such officials from saying or producing anything that may result in criminal liability.

(6) Except in the circumstances anticipated in Section 115(5), the National Forum is precluded from requesting a judge to give evidence concerning either anything they have said or any decision they have taken in the performance of a judicial function.

65. Interpellation

The National Forum may require any State official, except a judge, to report to it or to answer questions before it.

66. Clemency

(1) The National Forum has the exclusive power—

(a) to pardon a criminal offender;

(b) to grant amnesty to a group of offenders;

(c) to reprieve or commute a sentence;

(d) to remit a fine, penalty, or forfeiture; and

(e) to expunge a criminal record.

(2) The National Forum exercises any of the powers in Subsection (1) through a resolution for that purpose adopted with the support of at least two-thirds of the votes cast by its members.

67. Assumption of office by Members of the Forum

(1) Upon being declared elected as to the National Forum, a citizen must assume office as soon as possible by affirming, in accordance with Appendix IV—

(a) their allegiance to the Republic, the constitutional order, and the law; and

(b) their undertaking to fulfil the office of Member of the Forum with conscience and diligence.

(2) The term of a Member of the Forum begins once they have assumed office, and ends only upon an event resulting in the loss of their membership in the National Forum.

(3) Upon assumption of their respective offices, the President and the Vice President also assume office as Members of the Forum if they did not hold membership in the National Forum before their election to the office of President or Vice President.

(4) A President or Vice President assuming office as a Member of the Forum in accordance with Subsection (3)—

(a) does not need to make the affirmation envisaged in Subsection (1); and

(b) is for the purposes of Cortesian law considered to have been elected to the National Forum.

68. Election of Members of the Forum

(1) An election for a Member of the Forum is held whenever an eligible citizen registers as a candidate for this office by—

(a) accepting a nomination with the support of at least two other citizens to stand in such an election; or

(b) declaring such a candidacy of their own accord with the support of at least two other citizens.

(2) For the purposes of Subsection (1), a citizen is not precluded from supporting multiple nominations or declarations.

(3) Any citizen is eligible to stand in an election to the National Forum, except if the citizen—

(a) holds judicial office;

(b) has stood unsuccessfully in such an election within any of the 14 days prior to the date of the intended registration; or

(c) is otherwise precluded from holding office as a Member of the Forum by or pursuant to a provision of this Constitution.

(4) The Minister of the Interior must designate a public channel, which must be easy for all citizens to access and utilise, to facilitate—

(a) the nomination of citizens for election to the National Forum;

(b) the declaration of candidacies for election to the National Forum; and

(c) indications of support for nominations or candidacies.

(5) A citizen intending to stand for election to the National Forum must register their candidacy through the channel designated by the Minister of the Interior in terms of Subsection (4).

(6) A candidate for election to the National Forum may deregister their candidacy at any time.

(7) The Minister of the Interior must—

(a) deregister any candidacy for election to the National Forum, as soon as possible after the registration of such a candidacy, where the candidate is not eligible to stand for such office; and

(b) promptly submit, through the channel designated in terms of Subsection (4), written reasons explaining any decision to deregister a candidacy for election to the National Forum to the affected candidate.

(8) A citizen whose candidacy is deregistered in terms of Subsection (7)(a) may register their candidacy in terms of Subsection (5) again if they believe they have rectified the impediments to their candidacy.

(9) At least 72 hours must elapse between the registration of a candidacy for membership in the National Forum and the corresponding election. Throughout this time, the Minister of the Interior must make any appropriate arrangements to facilitate—

(a) the public promotion of the candidacy; and

(b) the ventilation of any submissions from the public concerning the candidate, including questions, comments, and objections.

(G: 16) "Election period" in this Section means a period of 48 hours designated in terms of Subsection (10).

(G: 17) Subsection (10) has been revised by the Fourth Constitutional Amendment, 2025

(10) The Minister of the Interior must designate a free and fair election period for any candidate validly registered in terms of this Section. This election period must commence on the soonest suitable day within 14 days of the date the candidacy was registered that is conducive to the commencement of a free and fair election.

(11) In the interest of expediency, the Minister of the Interior may arrange for up to three elections for Members of the Forum to take place concurrently if this—

(a) would not impair any of those elections being free and fair; and

(b) would not circumvent any of the requirements in Subsections (9) and (10).

(12) The Minister of the Interior must open voting to all citizens on whether to elect a candidate to the National Forum at the start of each election period. The Minister must ensure that such voting complies with the following:

(a) Only two choices, one to support the election of the candidate and one to oppose the election of the candidate, must be available in the voting.

(b) The procedure for single-winner standard voting must be used.

(c) Voting must—

(i) be conducted by secret ballot; and

(ii) last for 48 hours.

(13) The Chief Justice must declare a citizen elected as a Member of the Forum if, on conclusion of voting, that citizen receives the support of at least three-fifths of votes cast by citizens.

69. Loss of membership in the National Forum

(1) A person loses membership in the National Forum upon—

(a) ceasing to be eligible for such membership;

(b) resigning from office;

(c) being recalled; being impeached; or

(d) being absent from the Republic for 14 days without providing any notice thereof.

(2) The notice contemplated in Subsection (1)(d) may be provided by the person concerned or by someone in their stead.

70. Resignation of Members of the Forum

(1) A Member of the Forum may resign from their office at any time by making an announcement to the Nation for this purpose.

(2) If it becomes manifest that a Member of the Forum has resigned in an unequivocal manner other than that stipulated by Section (1), that Member of the Forum is nonetheless considered to have resigned from office for the purposes of Cortesian law.

71. Recall of Members of the Forum

(1) The application of this Section extends to any Cabinet member except the President and the Vice President.

(2) Subject to Subsection (3), voting to recall a Member of the Forum must take place—

(a) in the National Forum after a motion to commence such voting receives the support of at least one-third of Members of the Forum; or

(b) as a national referendum after a petition to commence such voting receives the support of at least one-quarter of the citizenry.

(3) Within 14 days of a previous motion or petition to commence recall voting against a Private Member—

(a) a motion to commence such voting against the same Private Member requires the support of one more Member of the Forum than was required for the previous motion to take effect; and

(b) a petition to commence such voting against the same Private Member requires the support of two more citizens than was required for the previous petition to take effect.

(4) The Chief Justice must open voting in the National Forum on whether to recall a Member of the Forum once a motion envisaged in Subsection (2)(a) has passed. Such voting must comply with the following:

(a) Only two choices, one to support the recall of the Member of the Forum and one to oppose such recall, must be available in the voting.
(b) The procedure for single-winner standard voting must be used.
(c) Voting must—
(i) be conducted by secret ballot; and
(ii) last for 48 hours.

(5) The Chief Justice must open voting to all citizens in a national referendum on whether to recall a Member of the Forum once a petition envisaged in Subsection (2)(b) has received the requisite support. The Chief Justice must ensure that such voting complies with the following:
(a) Only two choices, one to support the recall of the Member of the Forum and one to oppose such recall, must be available in the voting.
(b) The procedure for single-winner standard voting must be used.
(c) Voting must—
(i) be conducted by secret ballot; and
(ii) last for 48 hours.

(6) The Chief Justice must declare the results of any recall voting, whether in the National Forum or as a national referendum, as soon as possible after the close of voting. The relevant Member of the Forum loses membership in the National Forum if, on conclusion of the voting, the recall of that Member receives the support of—
(a) a majority of votes cast by Members of the Forum if the recall voting took place in the National Forum; or
(b) a majority of votes cast by citizens if the recall voting took place as a national referendum.

72. Impeachment of Private Members
(1) A Private Member may only be impeached on account of serious misconduct.
(2) Subject to Subsection (3), proceedings to impeach a Private Member commence upon a complaint of serious misconduct against that member in the form of—
(a) a motion which has received the support of at least one-third of Members of the Forum; or
(b) a petition which has received the support of at least one-quarter of the citizenry.

(3) Within 14 days of a previous motion or petition to commence impeachment proceedings against a Private Member—

(a) a motion to commence such proceedings against the same Private Member requires the support of one more Member of the Forum than was required for the previous motion to take effect; and

(b) a petition to commence such proceedings against the same Private Member requires the support of two more citizens than was required for the previous petition to take effect.

(4) A motion or petition to commence proceedings to impeach a Private Member must provide an outline of the reasons and evidence that underlie the complaint of serious misconduct expressed by the motion or petition.

(5) Upon the commencement of proceedings to impeach a Private Member, the National Forum must investigate whether the complaint of serious misconduct against the Private Member is valid. During such an investigation—

(a) the National Forum must, unless this is inappropriate in the circumstances, arrange and provide a fair hearing within a reasonable time after impeachment proceedings commence where —

(i) the affected Private Member may present a full defence; and

(ii) the National Forum may receive any representations or hear any evidence to assist with the performance of its function in the proceedings.

(b) The hearing in Paragraph (a) must begin at a time agreed to by the affected Private Member, unless the National Forum decides that it is unable to agree to a reasonable time with that Private Member.

(6) The National Forum may make a finding, in consequence of its corresponding investigation, that a complaint of serious misconduct against a Private Member is valid through a resolution adopted with the support of a majority of the votes cast by its members.

(7) If the National Forum does not adopt a resolution as contemplated in Subsection (6) within seven days of the date on which impeachment proceedings commenced, or instead adopts a resolution to the effect that a complaint of serious misconduct against a Private Member is not valid, the impeachment proceedings lapse.

(8) The National Forum may extend the time limit for the adoption of a resolution contemplated in Subsection (6) by no more than seven days through a motion for that purpose with the support of at least one-third of its members.

(9) Impeachment proceedings do not lapse if the Private Member who is the subject of the proceedings has lost membership in the National Forum before the completion of the proceedings.

(10) If the National Forum adopts a resolution finding that a complaint of serious misconduct against a Private Member is valid—

- (a) a national referendum must be held to decide whether to impeach the Private Member in consequence of such resolution; and
- (b) the President may suspend the Private Member from office until the national referendum is decided.

(11) The Chief Justice must open voting in a national referendum contemplated in Subsection (10)(a) to all citizens on the day after the adoption of a corresponding resolution. The Chief Justice must ensure that such voting complies with the following:

- (a) Only two choices, one to support the impeachment of the relevant Private Member and one to oppose the impeachment, must be available in the voting.
- (b) The procedure for single-winner standard voting must be used.
- (c) Voting must—
  - (i) be conducted by secret ballot; and
  - (ii) last for 48 hours.

(12) The Chief Justice must declare the results of a national referendum contemplated in Subsection (8)(a) as soon as possible after the close of voting. The relevant Private Member is impeached and consequently loses membership in the National Forum if, on conclusion of the referendum, the impeachment of that Private Member receives the support of at least three-fifths of votes cast by citizens.

(13) A Private Member who has been impeached may not hold any public office for 90 days after the date on which they were impeached.

END OF ARTICLE IV

ARTICLE V

NATIONAL EXECUTIVE

73. Executive authority

(1) In the manner set out in this Constitution, the executive authority of the Republic vests in the President, the Vice President, the other individual Cabinet members, and the Cabinet collectively.

(2) The executive authority must be exercised in accordance with this Constitution.

74. President

(1) The President is—

(a) the head of State;

(b) the head of the national executive; and

(c) the highest representative of the Republic.

(2) During wartime, command of the Armed Forces is vested in the President.

(3) The President bears the ultimate responsibility for—

(a) fostering national unity;

(b) advancing the Republic and the national welfare;

(c) enshrining and safeguarding this Constitution.

(4) As head of State, the President is responsible for—

(a) signing bills into enactment;

(b) referring, when appropriate, a bill to the Supreme Court for a decision on the constitutional validity of that bill in accordance with Section 60(1);

(c) signing international agreements on behalf of the Republic;

(d) conferring honours and titles on behalf of the Republic;

(e) receiving foreign dignitaries on behalf of the Republic; and

(f) addressing the Nation on the state of national affairs periodically.

(5) Any executive powers or functions not assigned by this Constitution or a national law are vested in the President.

(6) The President may assign to and withdraw from a Cabinet member any executive power or function not expressly placed under the control of a specific Cabinet member or the Cabinet as a whole by this Constitution or a national law.

75. Vice President

(1) The Vice President is—

(a) the deputy head of State;

(b) the deputy head of the national executive;

(c) the second-highest representative of the Republic.

(2) As deputy head of State, the Vice President is responsible for—

(a) countersigning bills signed by the President;

(b) referring, when appropriate, a bill to the Supreme Court for a decision on the constitutional validity of that bill in accordance with Section 60(1);

(c) performing any of the responsibilities entrusted to the President—

(i) when designated by the President to do so; or

(ii) in the circumstances anticipated in Section 89(2).

(3) The Vice President must advise, assist, and support the President in the performance of the functions of head of State and head of the national executive.

76. Cabinet

(1) The Cabinet is composed of—

(a) the President;

(b) the Vice President;

(c) the Minister of Foreign Affairs;

(d) the Minister of the Interior;

(e) the Minister of Security; and

(f) any other Cabinet member appointed in terms of this Constitution.

(2) National legislation may establish ministerial portfolios other than those specified in Subsection (1).

(3) Subject to this Constitution and national laws, the Cabinet may determine and control its internal arrangements, proceedings, and procedures.

(4) Members of the Cabinet are collectively responsible for—

(a) implementing national laws whose execution is assigned to the Cabinet as a whole;

(b) coordinating the performance of executive functions;

(c) formulating, implementing, and maintaining the economic policy of the Republic;

(d) coordinating the development of national infrastructure;

(e) maintaining essential national standards; and

(f) directly governing, administering, and representing—

(i) the capital city; and

(ii) any areas falling under unincorporated territory.

(5) Members of the Cabinet are individually responsible for—

(a) participating in—

(i) the determination of executive policy guidelines; and

(ii) decisions on executive matters;

(b) implementing national laws whose execution is assigned to them; and

(c) informing one another of, and consulting one another on, matters of common interest.

(6) Members of the Cabinet have any powers necessarily implied by the assignment of a function to them.

(7) Members of the Cabinet—

(a) are accountable individually and collectively to the National Forum for the exercise of their powers and the performance of their functions; and

(b) must provide the National Forum with full and regular reports concerning matters under their control.

77. Executive policy

(1) The President, in consultation with the other members of the Cabinet, is responsible for determining policy guidelines for the performance of executive functions.

(2) The exercise of any executive power, and the performance of any executive function, must be done in accordance with the policy guidelines contemplated in Subsection (1).

78. Cabinet guests

(1) The President, with the concurrence of the Vice President, may introduce a guest member to the Cabinet to assist in dealing with matters requiring special knowledge.

(2) Only Cortesian nationals may be introduced to the Cabinet as a guest member.

(3) A guest membership in the Cabinet lapses once all matters for which such membership was granted have been concluded.

(4) Cabinet guests may not cast votes on any matters in the Cabinet.

79. Minister of Foreign Affairs

(1) The Minister of Foreign affairs is—

(a) the third-highest representative of the Republic in foreign matters;

(b) the head of the Department of Foreign Affairs; and

(c) the primary point of contact for the Department of Foreign Affairs.

(2) The Minister of Foreign Affairs is responsible for—

(a) advising the Cabinet on matters under their control;

(b) participating in the formulation, implementation, and maintenance of the Republic's foreign policy in the manner set out in Section 158;

(c) conducting foreign affairs on behalf of the Republic in coordination with the President and the Vice President;

(d) promoting tourism;

(e) establishing and maintaining embassies and consulates on behalf of the Republic;

(f) administering and exercising control over the Department of Foreign Affairs; and

(g) appointing and dismissing diplomats.

80. Minister of Security

(1) During peacetime, command of the Armed Forces is vested in the Minister of Security.

(2) The Minister of Security is—

(a) the head of the Department of Security; and

(b) the primary point of contact for the Department of Security.

(3) The Minister of Security is responsible for—

(a) formulating, implementing, and maintaining policies to ensure national security and public safety;

(b) advising the Cabinet on matters under their control;

(c) taking measures to strengthen the Republic's capacity to resist armed attack;

(d) recruiting military personnel to the Armed Forces on a voluntary basis;

(e) organising training exercises to prepare the Armed Forces;

(f) coordinating military operations during a state of war;

(g) taking measures to ensure that arrests are conducted lawfully and effectively;

(G: 18) Paragraph (h) has been revised by the Fourth Constitutional Amendment, 2025.

(h) coordinating with appointed prosecutors to investigate alleged crimes;
(i) administering detentions and imprisonments in accordance with the Charter of Rights; and
(j) administering and exercising control over the Department of Security.

81. Minister of the Interior

(1) The Minister of the Interior is—
(a) the head of the Department of the Interior; and
(b) the primary point of contact for the Department of the Interior.

(2) The Minister of the Interior is responsible for—
(a) advising the Cabinet on matters under their control;
(b) taking national censuses periodically;
(c) taking measures to facilitate the assimilation of new Cortesian nationals;
(d) conducting elections where required by this Constitution;
(e) taking measures—
(i) to strengthen the State's capacity to provide basic services;
(ii) to promote access to State services; and
(iii) to progressively enhance the quality of State services;
(f) maintaining sources of information, and easy access to such sources, to educate the public about—
(i) the functioning of government;
(ii) the history and heritage of the Nation;
(iii) national laws;
(iv) the international obligations of the Republic; and
(v) any other relevant information concerning the Nation;
(g) taking measures to conserve and enshrine national sites of cultural, historical, or aesthetical significance; and
(h) administering and exercising control over the Department of the Interior.

82. Minister without Portfolio

(1) Ministers without Portfolio have the right to participate in Cabinet activities and vote on Cabinet matters.

(2) Ministers without Portfolio are responsible for advising the Cabinet and performing any functions assigned to them.

83. Decisions of the Cabinet

(1) Where a difference of opinion arises among members of the Cabinet on an executive matter, the decision of the President prevails, even if the matter ordinarily falls under the control of a specific Cabinet member. If the President prefers not to exercise this power, or to reserve their decision, they may submit the question for voting.

(2) A decision by the President purporting to decisively settle a difference of opinion may be overridden by the Cabinet through voting, at the close of which—

(a) the Vice President has cast a vote in support of such an override; and

(b) a majority of other Cabinet members have cast votes in support of such an override.

(3) For the purposes of Subsection (2)—

(a) voting may be opened at the instance of—

(i) the Vice President; or

(ii) two other Cabinet members; and

(b) the Cabinet is not precluded from overriding a decision falling within the exclusive powers or functions of the President as head of the national executive.

(4) Whenever the President submits a question in the Cabinet for voting, the question is decided by a majority of the votes cast by Cabinet members; however, the President, upon a change of mind, may at any time terminate the voting and decide the question themselves in accordance with Subsection (1).

(5) In order to allow for deliberation, at least 24 hours must elapse between the introduction of a question before the Cabinet and any voting on that question.

(6) Subsection (5) does not apply when—

(a) the President, with the concurrence of the Vice President or two other Cabinet members, determines that a question they intend to submit for voting requires an urgent decision from the Cabinet; or

(b) the Vice President, with the concurrence of two other Cabinet members, determines that an urgent decision from the Cabinet is required on whether to override a decision of the President.

(7) Any voting on a question before the Cabinet must last for 24 hours, unless—

(a) the President, with the concurrence of the Vice President, determines otherwise for the purposes of a question submitted to the Cabinet for voting by the President; or

(b) the Vice President, with the concurrence of one other Cabinet member, determines otherwise for the purposes of voting on whether to override a decision of the President.

(8) This Section does not apply—

(a) in respect of any decision taken—

(i) by the President under their responsibilities as head of State; or

(ii) by the Vice President under their responsibilities as deputy head of State; and

(b) where this Constitution specifies otherwise, whether expressly or by necessary implication.

84. Assumption of office by Cabinet members

(1) Upon being declared elected as President or Vice President, or upon being appointed as a Cabinet member, a citizen must assume office as soon as possible by affirming, in accordance with Appendix IV—

(a) their allegiance to the Republic, the constitutional order, and the law; and

(b) their undertaking to fulfil the relevant office with conscience and diligence.

(2) The term of a Cabinet member, including the President and Vice President, begins once they have assumed office, and ends only upon an event resulting in them losing office.

(3) There is no limit on the number of times a citizen may be elected as President or Vice President.

85. Election of the President and Vice President

(G: 19) Section 85 has been revised by the Fifth Constitutional Amendment, 2026.

(G: 20) Subsection (1) has been added by the First Constitutional Amendment, 2023.

(1) An election for a President and Vice President must commence on the third Saturday of February, June, and October each year.

(G: 21) Subsection (2) has been revised by the First Constitutional Amendment, 2023.

(2) Outside of the regular election cycle envisaged in Subsection (1), an election for a President and Vice President must be arranged if one of the following circumstances arise:

(a) The office of President or Vice President has become vacant with 45 or more days remaining before the next election envisaged in Subsection (1).

(b) The President or Vice President has formally announced an intention to vacate office on a date that is 45 or more days before the next election envisaged in Subsection (1).

(G: 22) "Election period" in this Section means a period of 48 hours commencing from the start of a day specified in Subsection (1) or determined in terms of Subsection (3).

(G: 23) "Ticket" means the unit consisting of a presidential candidate and their corresponding candidate for Vice President.

(G: 24) Subsection (3) has been revised by the First Constitutional Amendment, 2023.

(G: 25) Paragraph (a) has been revised by the Fifth Constitutional Amendment, 2026.

(3) The Electoral Supervisor must—

(a) call for the registration of candidacies for President and Vice President no later than seven days before the date of each election, or 72 hours if-

(i) the election has been postponed in accordance with Section 86, or

(ii) the start of the candidacy period has been reasonably delayed such that fewer than seven days remain before the originally scheduled date of the election; and

(b) designate a public channel, which must be easy for all citizens to access and utilise, to facilitate the registration of presidential tickets.

(4) Whenever one of the circumstances anticipated in Subsection (2) arises—

(a) the Electoral Supervisor must call for the registration of candidacies for President and Vice President without unreasonable delay; and

(b) an election for a President and Vice President must commence on the first Saturday within the seventh and 14th day after the call for the registration of candidacies.

(5) Any citizen may stand in an election for a President, except if the citizen—

(a) holds judicial office; or

(b) is otherwise precluded from holding office as President by or pursuant to a provision of this Constitution.

(6) Subsection (5) applies *mutatis mutandis* in respect of eligibility to stand for Vice President.

(7) A citizen intending to stand for election as President must, at any time after the Electoral Supervisor has called for the registration of presidential candidacies, but no later than 24 hours before the date of the corresponding election—

(a) register their candidacy through the channel designated by the Electoral Supervisor in terms of Subsection (3)(b); and

(b) register in the same way a corresponding candidate for Vice President who has agreed to be named for this purpose.

(8) A candidate for President or Vice President may deregister their candidacy through the channel designated by the Electoral Supervisor in terms of Subsection (3)(b) at any time before or during the election.

(9) A candidate for President may deregister their corresponding candidate for Vice President through the channel designated by the Electoral Supervisor in terms of Subsection (3)(b) by registering a replacement candidate who has agreed to be named for this purpose.

(10) The Electoral Supervisor must—

(a) deregister any candidacy for President or Vice President, as soon as possible after the registration of such a candidacy, where the candidate is not eligible to stand for such office; and

(b) promptly submit, through the channel designated in terms of Subsection (3)(b), written reasons explaining any decision to deregister a candidacy to the affected candidate.

(11) Whenever a candidacy for President is deregistered, the corresponding candidacy for Vice President is also deregistered. The previous sentence also applies vice versa, except in the circumstances anticipated in Subsection (9).

(12) Subject to Subsection (13), a citizen whose candidacy for President or Vice President is deregistered in terms of this Section is not for this reason precluded from being registered again in accordance with Subsection (7).

(13) A citizen whose candidacy for President is deregistered in terms of, or as an incident to, Subsection (10)(a) may only register a ticket in terms of Subsection (7) again if they believe they have rectified the impediments to their candidacy.

(14) Throughout the period between the call for the registration of presidential candidacies and the close of the corresponding presidential election, the Electoral Supervisor must make any appropriate arrangements to facilitate—

- (a) the public promotion of presidential tickets; and
- (b) the ventilation of any submissions from the public concerning any candidates or tickets, including questions, comments, and objections.

(15) If there is only one registered ticket in a particular presidential election once the period for the registration of such candidacies has lapsed—

- (a) Subsections (16) and (17) do not apply or, if they are already in operation, stop applying; and
- (b) the Electoral Supervisor must—
  - (i) announce to the Nation that this Subsection applies in the stead of Subsections (16) and (17); and
  - (ii) declare elected for their respective offices, at the close of the relevant election period, the candidates constituting that ticket.

(16) The Electoral Supervisor must open voting for the election of a President and Vice President at the start of the relevant election period. The Electoral Supervisor must ensure that such voting complies with the following:

(a) All registered presidential tickets must be available as choices in the voting.

(b) The procedure for—

(i) single-winner standard voting must be used if only two presidential tickets have been registered for the election; or

(ii) single-winner instant-runoff voting must be used if more than two presidential tickets have been registered for the election.

(c) Voting must—

(i) be conducted by secret ballot; and

(ii) last for 48 hours.

(17) The Electoral Supervisor must declare elected for their respective offices the candidates constituting the presidential ticket which, at the close of voting—

(a) has received a majority of the votes cast by citizens if single-winner standard voting is applicable; or

(b) has won the election in terms of single-winner instant-runoff voting if this is applicable.

(18) Any ties that need to be decided in order to determine the winning ticket at the close of voting in a presidential election must be resolved in accordance with Section 37, but for the purposes of this Subsection, any functions assigned to the President by that Section are instead assigned to the National Forum.

(G: 26) Subsections 19 and 20 have been added by the Fifth Constitutional Amendment, 2026.

(19) The Electoral Supervisor is—

(a) the Chief Justice, or if one does not currently exist and there are no judges to act as one;

(b) a citizen appointed to the position for the duration of the election by a three-fifths national referendum lasting 48 hours.

(20) If there are no registered tickets in a particular presidential election, or no election was or could be run, then a Period of Prorogation as outlined in Article IX begins at the end of the election day or immediately if such time has passed and the Secretariat is activated.

86. Postponement of elections for the President and Vice President

(G: 27) Section 86 has been added by the Second Constitutional Amendment, 2023.

(1) An election for the President and Vice President may only be postponed if exceptional circumstances exist, or are reasonably apprehended, that—

(a) are likely to result in the election not being free or fair; or

(b) are likely to substantially interfere in the effective running of that election.

(2) The National Forum, through a resolution adopted with the support of a majority of the votes cast by its members, may determine that an election for the President and Vice President must be postponed, but only in the circumstances contemplated in Subsection (1). Such a resolution must include—

(a) the reasons for that determination;

(b) any supporting evidence for that determination; and

(c) if practical, a suitable alternative timeframe for the election that allows compliance with Section 85 to the fullest extent possible.

(3) A resolution adopted in terms of Subsection (2) must immediately be referred to the Supreme Court, which—

(a) must confirm or reject the determination of the National Forum without unreasonable delay; and

(b) may issue any effective and equitable orders ancillary to its confirmation or rejection of the National Forum's determination, including—

(i) an order requesting the National Forum to supply further evidence;

(ii) an order for one or more persons to report to the Supreme Court on the circumstances affecting the election;

(iii) an order for the election to be conducted on a suitable alternative timeframe for the election that allows compliance with Section 85 to the fullest extent possible;

(iv) an order varying any previous order issued in relation to the National Forum's determination to account for any change in the circumstances affecting the election.

(4) If the Supreme Court confirms a resolution adopted in terms of Subsection (2), the election contemplated in that resolution is postponed and must instead take place in accordance with the alternative timeframe proposed in the resolution, as varied by the Supreme Court. If such a

timeframe has not been supplied, the Supreme Court must issue an order in terms of Subsection (3)(b)(iii) after—

(a) giving any interested party an opportunity to make representations; and

(b) determining that the circumstances that resulted in the postponement of the election will not persist through the timeframe contemplated by that order.

87. Appointment of Cabinet Ministers

(1) The President, with the concurrence of the Vice President, must appoint from among the Members of the Forum—

(a) the Minister of Foreign Affairs;

(b) the Minister of Security; and

(c) the Minister of the Interior.

(2) The President, with the concurrence of the Vice President, may appoint a Member of the Forum to a ministerial office established by national legislation envisaged in Section 76(2).

(3) The President, with the concurrence of the Vice President and the National Forum, may appoint a Minister without Portfolio from among the Members of the Forum.

88. Acting President

(1) The provisions of Section 91 apply instead of this Section when the entire Cabinet has been dismissed.

(2) Outside of the circumstances anticipated in Section 91, an Acting President is appointed whenever—

(a) the President deems this necessary;

(b) the President has been absent from the Republic for more than 72 hours and the remaining members of the Cabinet decide to appoint an Acting President.

(3) If in making the decision contemplated in Subsection (2)(b), a difference of opinion arises in the Cabinet over whether to appoint an Acting President, voting to decide the question may be opened in the Cabinet at the instance of the Vice President or two other Cabinet members. Such voting must last 24 hours. An Acting President must be appointed if a majority of the votes cast by Cabinet members support making such an appointment.

(4) A person in the following order is appointed as Acting President whenever this is required by Subsection (2):

(a) The Vice President.
(b) A Cabinet member designated by the President.
(c) A Cabinet member designated by the Cabinet.
(d) A Member of the Forum designated by the National Forum.

(5) A person listed lower in the order in Subsection (4) may only be appointed as Acting President if every person listed higher—
(a) has indicated that they are not available to act as President; or
(b) has been absent from the Republic for 24 hours.

(6) When a person listed higher in the order in Subsection (4) than the Acting President becomes available, the office of Acting President transfers to that person.

(7) An Acting President has the responsibilities, powers, and functions of the President.

(8) Subject to Subsection (9), a person appointed as Acting President must assume office as soon as possible by affirming, in accordance with Appendix IV—
(a) their allegiance to the Republic, the constitutional order, and the law; and
(b) their undertaking to fulfil the office of Acting President with conscience and diligence.

(9) A person who has made the affirmation required by Subsection (8) to assume office as Acting President does not need to repeat this affirmation upon a subsequent appointment to this office, and instead assumes office immediately upon appointment, unless a presidential election has intervened between their affirmation and subsequent appointment.

(10) The office of Acting President lapses whenever the President indicates that they are available to fulfil their office again.

89. Other acting Cabinet members

(1) If the President, with the concurrence of the Vice President, determines that there are no suitable candidates from among the Members of the Forum for appointment to a Cabinet office envisaged in Section 87(1)—
(a) the President, with the concurrence of the Vice President, may—
(i) appoint a Cabinet member or a Member of the Forum to assume that office in an acting capacity; or
(ii) distribute the powers and functions under that office among Cabinet members; and

(b) the President must submit written reasons to the National Forum explaining this determination in sufficient detail.

(2) For the purposes of Subsection (1)(a)(i), a Cabinet member is not precluded from holding their usual office in addition to holding another Cabinet office in an acting capacity.

(3) A permanent appointment must be made for each office envisaged in Section 87(1) as soon as the President, with the concurrence of the Vice President, determines that there is a suitable candidate for that office from among the Members of the Forum.

(4) Any acting capacity or distribution of powers and functions to ensure the fulfilment of a Cabinet office in terms of this Section lapses upon a person being permanently appointed to that office.

90. Temporary transfer of functions

(1) If it becomes manifest that a Cabinet member will not be available to perform a function exclusively assigned to them within a time required by this Constitution, the President may perform that function in the Cabinet member's stead.

(2) The Vice President, with the concurrence of another Cabinet member, may perform a function exclusively assigned to the President if—

(a) the performance of that function is urgent; and

(b) it becomes manifest that the President will not be available to perform that function timeously.

(3) The President may temporarily transfer or distribute the powers and functions of a Cabinet member to another Cabinet member or among the Cabinet when the Cabinet member—

(a) has indicated that they will not be available to fulfil their office for a substantial period of time; or

(b) has been absent from the Republic for 72 hours.

91. Transitional continuation of Cabinet

(G: 28) Subsection (1) has revised by the Second Constitutional Amendment, 2023.

(1) Whenever the President or Vice President has vacated office outside of the regular election cycle envisaged in Section 85(1), the Chief Justice must call for nominations for an Acting President in the National Forum as soon as possible. The period for making such nominations must last 24 hours.

(2) For the purposes of this Section, any Member of the Forum may be nominated to act as President with the support of two other Members of the Forum.

(3) If only one Member of the Forum has been nominated to act as President upon the close of the period for nominations envisaged in Subsection (1) —

- (a) Subsections (4) and (5) do not apply; and
- (b) the Chief Justice must—
  - (i) announce to the National Forum that this Subsection applies in the stead of Subsections (4) and (5); and
  - (ii) declare that candidate elected as Acting President.

(4) The Chief Justice must open voting in the National Forum for the election of an Acting President upon the close of the period for nominations contemplated in Subsection (1). The Chief Justice must ensure that such voting complies with the following:

- (a) Any Members of the Forum nominated to act as President must be available as choices in the voting.
- (b) The procedure for—
  - (i) single-winner standard voting must be used if only two Members of the Forum have been nominated; or
  - (ii) single-winner instant-runoff voting must be used if more than two Members of the Forum have been nominated.
- (c) Voting must—
  - (i) be conducted by secret ballot; and
  - (ii) last for 24 hours.

(5) The Chief Justice must declare elected as Acting President the Member of the Forum who, at the close of voting—

- (a) has received a majority of the votes cast by Members of the Forum if single-winner standard voting is applicable; or
- (b) has won the election in terms of single-winner instant-runoff voting if this is applicable.

(6) Any ties that need to be decided in order to determine the winning candidate at the close of voting contemplated in Subsection (4) must be resolved in accordance with Section 37, but for the purposes of this Subsection, any functions assigned to the President by that Section are instead assigned to the National Forum.

(7) An Acting President elected in terms of this Section serves until a President has assumed office after being elected in accordance with

Section 85, but if the Acting President vacates office five or more days before a presidential election, a new Acting President must be elected in terms of this Section.

(8) Section 88(8) and (9) apply for the purposes of a person elected as Acting President in terms of this Section.

92. Loss of membership in the Cabinet

(1) A person loses office as President or Vice President upon—

(a) ceasing to be eligible for that office;

(b) losing membership in the National Forum;

(c) resigning from that office;

(d) being subject to an expression of a lack of confidence by the citizenry or the National Forum;

(e) being impeached; or

(G: 29) Paragraph (f) has been revised by the Second Constitutional Amendment, 2023.

(f) being replaced in an election.

(2) Whenever the President or Vice President vacates office, the entire Cabinet is dismissed.

(3) In addition to the reason in Subsection (2), a Cabinet member other than the President or Vice President loses membership in the Cabinet upon—

(a) losing membership in the National Forum;

(b) resigning from their Cabinet office;

(c) being subject to an expression of a lack of confidence by the citizenry or the National Forum;

(d) being dismissed by the President; or

(e) being impeached.

(4) A person remains a Member of the Forum if they lost membership in the Cabinet by—

(a) resigning from their Cabinet office;

(b) being dismissed by the President;

(c) being subject to an expression of a lack of confidence by the citizenry or the National Forum; or

(d) as a result of the President or Vice President vacating office.

93. Resignation of Cabinet members

(1) A member of the Cabinet may resign from their office at any time by making an announcement to the Nation for this purpose.

(2) If it becomes manifest that a Cabinet member has resigned in an unequivocal manner other than that stipulated by Subsection (1), that Cabinet member is nonetheless considered to have resigned from office for the purposes of Cortesian law.

94. Dismissal of Cabinet Ministers

(1) The President, with the concurrence of the Vice President, may dismiss any other Cabinet member.

(2) The President must promptly submit written reasons to the National Forum explaining any decision to dismiss a Cabinet member in sufficient detail.

95. [Repealed]

(G: 30) Section 95 has been repealed by the First Constitutional Amendment, 2023.

96. Assessments of confidence

(G: 31) The heading of Section 96 has been revised by the First Constitutional Amendment, 2023.

(1) Voting may be initiated to assess confidence in—
  (a) the President;
  (b) the Vice President;
  (c) the Cabinet excluding the President and Vice President; or
  (d) any other specific Cabinet member.

(2) Subject to Subsection (3), voting on whether to express confidence in an official or group of officials contemplated in Subsection (1) takes place—
  (a) in the National Forum after a motion to commence such voting receives the support of at least one-third of Members of the Forum; or
  (b) as a national referendum after a petition to commence such voting receives the support of at least one-quarter of the citizenry.

(3) Within 14 days of a previous motion or petition to commence confidence voting against an official or group of officials—
  (a) a motion to commence such voting against the same official or group of officials requires the support of one more Member of the Forum than was required for the previous motion to take effect; and
  (b) a petition to commence such voting against the same official or group of officials requires the support of two more citizens than was required for the previous petition to take effect.

(4) A motion or petition contemplated in Subsection (2) must specify the official in respect of whom or group of officials in respect of which it proposes to assess confidence.

(5) The Chief Justice must open voting in the National Forum on whether to express confidence in an official or group of officials once a motion envisaged in Subsection (2)(a) has passed. Such voting must comply with the following:

(a) Only two choices, one to express confidence in the relevant official or group of officials and one to express a lack of such confidence, must be available in the voting.
(b) The procedure for single-winner standard voting must be used.
(c) Voting must—
(i) be conducted by secret ballot; and
(ii) last for 48 hours.

(6) The Chief Justice must open voting to all citizens in a national referendum on whether to recall a Private Member once a petition envisaged in Subsection (2)(b) has received the requisite support. The Minister must ensure that such voting complies with the following:
(a) Only two choices, one to express confidence in the relevant official or group of officials and one to express a lack of such confidence, must be available in the voting.
(b) The procedure for single-winner standard voting must be used.
(c) Voting must—
(i) be conducted by secret ballot; and
(ii) last for 48 hours.

(7) The Chief Justice must declare the results of any confidence voting, whether conducted in the National Forum or as a national referendum, as soon as possible after the close of voting. The relevant official or group of officials is dismissed if, on conclusion of the voting, a lack of confidence in that official or group of officials is expressed by—
(a) a majority of votes cast by Members of the Forum if the confidence voting took place in the National Forum; or
(b) a majority of votes cast by citizens if the confidence voting took place as a national referendum.

(8) Whenever a lack of confidence is expressed in the Cabinet excluding the President and Vice President, the President must reconstitute the Cabinet in accordance with Section 87.

97. Impeachment of Cabinet members
(1) A Cabinet member, including the President or Vice President, may only be impeached on account of serious misconduct.
(2) Subject to Subsection (3), proceedings to impeach a Cabinet member commence upon a complaint of serious misconduct against that member in the form of—
(a) a motion which has received the support of at least one-third of Members of the Forum; or

(b) a petition which has received the support of at least one-quarter of the citizenry.

(3) Within 14 days of a previous motion or petition to commence impeachment proceedings against a Cabinet member—

(a) a motion to commence such proceedings against the same member requires the support of one more Member of the Forum than was required for the previous motion to take effect; and

(b) a petition to commence such proceedings against the same member requires the support of two more citizens than was required for the previous petition to take effect.

(4) A motion or petition to commence proceedings to impeach a Cabinet member must provide an outline of the reasons and evidence that underlie the complaint of serious misconduct expressed by the motion or petition.

(5) Upon the commencement of proceedings to impeach a Cabinet member, the National Forum must investigate whether the complaint of serious misconduct against the member is valid. During such an investigation—

(a) the National Forum must, unless this is inappropriate in the circumstances, arrange and provide a fair hearing within a reasonable time after impeachment proceedings commence where —

(i) the affected Cabinet member may present a full defence; and

(ii) the National Forum may receive any representations or hear any evidence to assist with the performance of its function in the proceedings.

(b) The hearing in Paragraph (a) must begin at a time agreed to by the affected Cabinet member, unless the National Forum decides that it is unable to agree to a reasonable time with that member.

(6) The National Forum may make a finding, in consequence of its corresponding investigation, that a complaint of serious misconduct against a Cabinet member is valid through a resolution adopted with the support of a majority of the votes cast by Members of the Forum.

(7) If the National Forum does not adopt a resolution as contemplated in Subsection (6) within seven days of the date on which impeachment proceedings commenced, or instead adopts a resolution to the effect that a complaint of serious misconduct against a Cabinet member is not valid, the impeachment proceedings lapse.

(8) The National Forum may extend the time limit for the adoption of a resolution contemplated in Subsection (6) by no more than seven days through a motion for that purpose with the support of at least one-third of its members.

(9) Impeachment proceedings do not lapse if the Cabinet member who is the subject of the proceedings has lost membership in the Cabinet before the completion of the proceedings.

(10) If the National Forum adopts a resolution finding that a complaint of serious misconduct against a Cabinet member is valid—

- (a) a national referendum must be held to decide whether to impeach that member in consequence of such resolution; and
- (b) the President may suspend the Cabinet member from office until the national referendum is decided, unless the President is the subject of the complaint, in which case the Vice President may suspend the President from office until the national referendum is decided.

(11) The Chief Justice must open voting in a national referendum contemplated in Subsection (10)(a) to all citizens on the day after the adoption of a corresponding resolution. The Chief Justice must ensure that such voting complies with the following:

- (a) Only two choices, one to support the impeachment of the relevant Cabinet member and one to oppose the impeachment, must be available in the voting.
- (b) The procedure for single-winner standard voting must be used.
- (c) Voting must—
  - (i) be conducted by secret ballot; and
  - (ii) last for 48 hours.

(12) The Chief Justice must declare the results of a national referendum contemplated in Subsection (10)(a) as soon as possible after the close of voting. The relevant Cabinet member is impeached and consequently dismissed from the Cabinet if, on conclusion of the referendum, the impeachment of that Cabinet member receives the support of at least three-fifths of votes cast by citizens.

(13) A Cabinet member who has been impeached may not hold any public office for 90 days after the date on which they were impeached.

END OF ARTICLE V

ARTICLE VI

98. Courts

(1) The judiciary of the Republic consists of the Common Court and the Supreme Court.

(2) All courts in the Republic are courts of record.

(3) The judicial authority of the Republic vests in the courts. In exercising this authority, courts have the power and responsibility, subject to this Constitution, to hear any matter brought before them that—

(i) engages Cortesian jurisdiction; and

(ii) can be resolved by applying Cortesian law.

(4) A decision of a court binds all parties to which it applies.

(5) Courts may not charge any fee for the institution or hearing of any matter brought before them.

(6) Except as provided in this Constitution, the establishment of extraordinary courts is prohibited.

99. Independence of the courts

(1) The courts are independent and subject only to the law.

(2) Courts must apply the law impartially and without fear or favour.

(3) The courts have the inherent power to protect and regulate their own proceedings, subject to this Constitution.

(4) No person, juristic entity, or State institution may interfere with the functioning of the courts.

(5) State institutions outside of the judiciary must assist and protect the courts to ensure the independence, impartiality, dignity, accessibility, and effectiveness of the courts.

(G: 32) *"Judge", unless the context requires otherwise, includes the Chief Justice, any elected judge, and any acting judge.*

(6) If there is a reasonable apprehension that a judge is biased in respect of a matter for which they are otherwise required to sit, the judge must recuse themselves from that matter. If the judge refuses to do so, any party to the matter may apply to the Supreme Court for the recusal of the judge.

100. Transparency of the courts

(1) Unless otherwise specified in this Constitution, all proceedings before a court must be open to the public.

(2) Courts must provide publicly available written reasons—

(a) for any order issued in the finalisation of a matter; and

(b) for any interlocutory order where a party to which that order applies has requested such reasons.

101. Immunities of judges

(1) Judges may not be subject to civil or criminal liability either for anything they have said or for any decision they have made in the performance of their functions.

(2) The immunities of judges may not be extended beyond those provided in Subsection (1).

102. Chief Justice

(1) The Chief Justice is the head of the judiciary.

(2) As the head of the judiciary, the Chief Justice—

(a) is the foremost representative of the judiciary to the general public and other State institutions; and

(b) is responsible for administering the courts in accordance with the law and in a manner that ensures the independence, impartiality, dignity, accessibility, and effectiveness of the courts.

(3) The Chief Justice is responsible for—

(a) administering affirmations of office; and

(b) declaring the results of elections when required by this Constitution.

(G: 33) Subsection (4) has been revised by the Fourth Constitutional Amendment, 2025.

(4) A Chief Justice must be selected from among the elected judges—

(a) each time judges assume office after a judicial election; and

(b) in the event the office of Chief Justice is vacant.

(5) The selection of a Chief Justice must be made—

(a) by consensus of the elected judges, or

(b) by sortition, if a consensus cannot be reached.

(6) Whenever the Chief Justice is not available within a reasonable time to perform the functions of their office, the President may select an Acting Chief Justice from among the other elected judges by sortition to assume

the responsibilities, powers, and functions of the Chief Justice until the Chief Justice is available again.

103. Judges

(1) Judges sit on the Supreme Court and, when required, the Common Court.

(2) The Chief Justice, with the concurrence of the President, may appoint an acting judge when—

(a) not enough elected judges are available to sit for a matter within a reasonable time;

(b) no elected judge is available within a reasonable time to take the place of a judge who has been recused from a matter; or

(c) an elected judge has vacated office.

(3) An acting judge appointed in place of an elected judge for a reason contemplated in Subsection 2(a) or (b) sits for any matter to which such a reason applies.

(4) An acting judge appointed to fill a vacancy serves until the judges elected at the next judicial election assume office.

(5) Subject to Subsection (6), a person appointed as an acting judge must assume office as soon as possible by affirming, in accordance with Appendix IV, their allegiance to the Republic, this Constitution, and the law, and their undertaking to fulfil the judicial office with corresponding diligence.

(6) A person who has made the affirmation required by Subsection (5) to assume office as an acting judge does not need to repeat this affirmation upon a subsequent appointment as an acting judge, and instead assumes office immediately upon appointment, unless a judicial election has intervened between their affirmation and subsequent appointment.

(7) The Chief Justice may remove an acting judge before the period of appointment of the acting judge has lapsed, but must provide written reasons for this as soon as possible to the affected acting judge and the National Forum whenever such a removal is carried out.

104. Candidates for acting judge

(1) The following persons are eligible to be appointed as acting judges:

(a) Former elected judges of the Republic.

(b) Members of the Forum.

(c) Cortesian nationals who have obtained a legal qualification in terms of national legislation, provided such legislation specifies that this qualification makes the national eligible for the purposes of this Subsection.

(d) Cortesian nationals who have served with distinction as a judge in a foreign jurisdiction.

(2) When the appointment of an acting judge is required, an available person from the higher listed group in Subsection (1) takes precedence.

105. Court procedures

(1) National legislation may be enacted, in accordance with this Article, to provide for the rules and procedures of the Common Court and the Supreme Court.

(2) To the extent national legislation does not completely provide for a purpose envisaged in Subsection (1), the Chief Justice must make and publish uniform rules and procedures for that purpose.

106. Supreme Court

(1) The Supreme Court is the highest court in the Republic. It consists of three judges.

(2) Any matter before the Supreme Court must be heard by three judges, of which no more than two may be acting judges.

(3) A judge who sat for a matter on first instance is not precluded from sitting for that matter on appeal.

(4) The Supreme Court—

(a) may hear any matter—

(i) arising on appeal from the Common Court;

(ii) brought to it directly, if this is in the interests of justice;

(iii) engaging its exclusive jurisdiction as set out in Subsection (5); or

(iv) referred to it by the Common Court in terms of Section 108(1); and

(b) must hear any matter referred to it by the Common Court in terms of Section 108(2).

(5) Only the Supreme Court may—

(a) adjudicate disputes between State institutions concerning their constitutional status, powers, or functions;

(b) decide whether a bill is constitutionally valid, but only in the circumstances anticipated in Section 60(1);

(c) adjudicate applications anticipated in Section 61(1);

(d) decide whether a constitutional amendment is constitutionally valid, but only in the circumstances anticipated in Section 62(2);

(G: 34) Paragraph (e) has been added by the Second Constitutional Amendment, 2023.

(e) decide referrals in terms of Section 86(3);

(f) decide whether a judge must be recused from a matter, but only in the circumstances anticipated in Section 99(6); or

(g) adjudicate applications anticipated in Section 168(7).

(6) The Supreme Court makes the final determination as to whether a matter engages its exclusive jurisdiction.

(7) Except as set out in Section 109(3), any matter before the Supreme Court is resolved by a decision with the support of a majority of judges.

107. Common Court

(1) The Common Court is the court of first instance in the Republic.

(2) Any matter brought before the judiciary that meets the requirements of Section 98(3) may be heard by the Common Court, except matters engaging the exclusive jurisdiction of the Supreme Court.

(3) The Common Court consists of one judge, who must be selected according to the rules contemplated in Section 105.

108. Referral of matters to the Supreme Court

(1) If in the course of proceedings before the Common Court it becomes manifest that the resolution of a matter requires a decision that falls within the exclusive jurisdiction of the Supreme Court, the matter must be referred to the Supreme Court.

(2) The following decisions of the Common Court must be referred to the Supreme Court, which in turn must decide whether to confirm the decision of the Common Court, and are of no effect unless confirmed by the Supreme Court:

(a) A decision of the Common Court that is inconsistent with a prior decision of the Supreme Court.

(b) A decision of the Common Court declaring all or part of piece of a national legislation invalid.

109. Assignment of matters to a court

(1) Any application for a court to hear a matter, including applications to request leave to appeal a matter to the Supreme Court and applications to bring a matter directly to the Supreme Court, must be brought to the Supreme Court. The Supreme Court must hear all such applications.

(2) The Supreme Court is responsible for—

(a) deciding whether a matter should be heard; and

(b) assigning matters that it decides should be heard to the appropriate court.

(3) As an exception to Section 106(7), a decision by the Supreme Court that a matter should be heard requires the support of only one judge. This Subsection does not apply to matters referred to the Supreme Court by the Common Court.

110. Court orders in constitutional matters

(1) A court may issue any effective and equitable order in the decision of matters involving the application of this Constitution.

(2) A court that finds any law or conduct to be inconsistent with the Constitution—

(a) must issue an order declaring that law or conduct to be invalid to the extent of its inconsistency; and

(b) may issue any effective and equitable order to remedy the inconsistency, including—

(i) an order limiting the retrospective effect of a declaration of invalidity, if this is in the interests of justice;

(ii) an order suspending the declaration of invalidity, for an appropriate period and with appropriate conditions, to allow the competent authority to remedy the inconsistency;

(iii) an order reading in content to a law, reading down content of a law, or severing content from a law, if to do so does not interfere with the purpose of the law.

111. Interrupted matters

(1) The rules of the Common Court and the Supreme Court, adopted in terms of Section 105, must provide for the finalisation of any pending matter where a participating judge has vacated office.

(2) In furtherance of Subsection (1), the rules of the Common Court and the Supreme Court may authorise the Chief Justice to allow a person who was a sitting judge in a matter, and who was not able to finalise or participate in finalising that matter as a result of a judicial election that took place before the matter was finalised in which they did not retain their judicial office, to finalise or participate in finalising the matter as if they still held their office as at the time the matter was brought before them.

112. Assumption of judicial office

(1) Upon being declared elected as a judge, a citizen must assume office as soon as possible by affirming, in accordance with Appendix IV—

(a) their allegiance to the Republic, the constitutional order, and the law; and

(b) their undertaking to fulfil the judicial office with conscience and diligence.

(2) The term of a judge begins once they have assumed office, and ends—

(a) upon vacating office if they have resigned or been removed; or

(b) upon the assumption of office by the judges elected at the next judicial election.

(3) There is no limit on the number of times a citizen may be elected as a judge.

113. Election of judges

(G: 35) Section 113 has been revised by the Fifth Constitutional Amendment, 2026.

(G: 36) "Election period" in this Section means a period of 48 hours after the start of a day specified in Subsection (1) or determined in terms of Subsection (2).

(G: 37) Subsection (1) has been revised by the Fourth Constitutional Amendment, 2025.

(1) Subject to Subsection (3), an election for three judges must commence on the third Saturday of December, April, and August each year.

(G: 38) Subsection (2) has been added by the Fifth Constitutional Amendment, 2026.

(2) Outside of the regular election cycle envisaged in Subsection (1), an election for three judges must be arranged, subject to Subsection (3), if the following circumstances arise:

(a) there are no elected judges; and

(b) a petition to commence an elections for judges receives the support of at least one-third of the citizenry.

(3) If the Minister of the Interior determines, with the concurrence of the Cabinet, that there is a reasonable apprehension an upcoming election for judges will not be free or fair if it commences on a day specified in Subsection (1), the Minister must designate a new date for the commencement of that particular election. The new date must be announced to the Nation by the Minister as soon as possible, and must fall on—

(a) the nearest Friday, Saturday, or Sunday conducive to the commencement of a free and fair election after the original date;

(b) the nearest weekday conducive to the commencement of a free and fair election if there is no conducive Friday, Saturday, or Sunday within 14 days of the original date; or

(c) the most otherwise suitable day within 14 days of the original date if there is no day conducive to the commencement of a free and fair election within 14 days of the original date.

(4) Any citizen may stand in an election for judicial office, except if the citizen—

(a) holds another public office at the time of the election, unless the law establishing each office held by the citizen expressly specifies that a holder of that office is eligible to hold office as a judge; or

(b) is otherwise precluded from holding office as a judge by or pursuant to a provision of this Constitution.

(5) The Minister of the Interior must—

(a) call for the registration of candidacies for judicial office no later than seven days before the date of each judicial election; and

(b) designate a public channel, which must be easy for all citizens to access and utilise, to facilitate the registration of candidacies for judicial office.

(6) A citizen intending to stand for election to serve as a judge must register their candidacy through the channel designated by the Minister of the Interior in terms of Subsection (5)(b) at any time after the Minister has called for the registration of such candidacies, but no later than 24 hours before the date of the election.

(7) A candidate for judicial office may deregister their candidacy through the channel designated by the Minister of the Interior in terms of Subsection (5)(b) at any time before or during the election.

(8) A citizen who has deregistered their candidacy for judicial office is not for this reason precluded from being registered again in accordance with Subsection (6).

(9) The Minister of the Interior must—

(a) deregister any candidacy for judicial office, as soon as possible after the registration of such a candidacy, where the candidate is not eligible to stand for such office; and

(b) promptly submit, through the channel designated in terms of Subsection (5)(b), written reasons explaining any decision to deregister a candidacy for judicial office to the affected candidate.

(10) A citizen whose candidacy is deregistered in terms of Subsection (9)(a) may only register their candidacy in terms of Subsection (6) again if they believe they have rectified the impediments to their candidacy.

(11) Throughout the period between the call for the registration of candidacies for judicial office and the close of the corresponding judicial election, the Minister of the Interior must make any appropriate arrangements to facilitate—

(a) the public promotion of candidacies; and

(b) the ventilation of any submissions from the public concerning any candidates, including questions, comments, and objections.

(G: 39) Subsections 12-14 have been revised by the Fourth Constitutional Amendment, 2025.

(12) If there are no more than three registered candidates in a particular election for judges once the period for the registration of such candidacies has lapsed—

(a) the Minister of the Interior must open voting for concurrent elections for each individual registered candidates to all citizens at the start of the election period. The Minister must ensure that such voting complies with the following:

(i) Only two choices, one to support the election of the candidate and one to oppose the election of the candidate, must be available in the voting.

(ii) The procedure for single-winner instant-runoff voting must be used.

(iii) Voting must be conducted by secret ballot.

(iv) Voting must last for 48 hours, unless extended in terms of Section 37.

(v) The Minister of the Interior must declare a candidate elected as a Judge if, on at the close of voting, that candidate receives the support of at least three-fifths of votes cast by citizens.

(13) If there are more than three registered candidates in a particular election for judges once the period for the registration of such candidacies has lapsed—

(a) the Minister of the Interior must open voting for the election of three judges to all citizens at the start of the election period. The Minister must ensure that such voting complies with the following:

(i) All registered candidates for the judicial election must be available as choices in the voting.
(ii) The procedure for multiple-winner instant-runoff voting must be used.
(iii) Voting must be conducted by secret ballot.
(iv) Voting must last for 48 hours, unless extended in terms of Section 37.
(v) The Minister of the Interior must declare elected all candidates for judicial office who, at the close of voting, have won the election in terms of multiple-winner instant-runoff voting.

(14) If, on the conclusion of elections in terms of Subsection (12), no candidate has been elected, the President may:
(a) Immediately re-open candidacy registrations and schedule a repeat election in terms of Subsection (3), if the previous election was not a repeat election, or
(b) Invoke Section 142.

114. Loss of judicial office

(1) A person loses office as a judge upon—
(a) ceasing to be eligible for judicial office;
(b) resigning from office;
(c) being removed in terms of Section 116;
(d) being absent from the Republic for 14 days without providing any notice thereof; or

(G: 40) Paragraph (e) been added by the Second Constitutional Amendment, 2023.

(e) being replaced in an election.

(2) The notice contemplated in Subsection (1)(d) may be provided by the person concerned or by someone in their stead.

115. Resignation of judges

(1) A judge may resign from their office at any time by making an announcement to the Nation for this purpose.

(2) If it becomes manifest that a judge has resigned in an unequivocal manner other than that stipulated by Subsection (1), that judge is nonetheless considered to have resigned from office for the purposes of Cortesian law.

116. Removal of judges

(1) A judge may only be removed from office on account of—

(a) serious misconduct;

(b) a serious conflict between their interests and those of judicial office or the Republic;

(c) gross incompetence; or

(d) an inability to perform the functions of judicial office.

(2) Subject to Subsection (3), proceedings to remove a judge commence—

(a) after a motion to commence such proceedings receives the support of at least one-third of Members of the Forum; or

(b) after a petition to commence such proceedings receives the support of at least one-quarter of the citizenry.

(3) Within 14 days of a previous motion or petition to commence removal proceedings against a judge—

(a) a motion to commence such proceedings against the same judge requires the support of one more Member of the Forum than was required for the previous motion to take effect; and

(b) a petition to commence such proceedings against the same judge requires the support of two more citizens than was required for the previous petition to take effect.

(4) A motion or petition to commence proceedings to remove a judge must—

(a) cite the grounds from Subsection (1) on which the motion or petition is based; and

(b) provide an outline of the reasons and evidence that underlie the motion or petition.

(5) Upon the commencement of proceedings to remove a judge, the National Forum must investigate whether any of the grounds in Subsection (1) on which the motion or petition initiating the proceedings is based have been met in respect of the judge. During such an investigation—

(a) the National Forum must, unless this is inappropriate in the circumstances, arrange and provide a fair hearing within a reasonable time after removal proceedings commence where—
    (i) the affected judge may present a full defence; and
    (ii) the National Forum may receive any representations or hear any evidence to assist with the performance of its function in the proceedings.
(b) The hearing in Paragraph (a) must begin at a time agreed to by the affected judge, unless the National Forum decides that it is unable to agree to a reasonable time with the judge.

(6) The National Forum may make a finding, in consequence of its corresponding investigation, that one of the grounds in Subsection (1) has been met in respect of a judge through a resolution adopted with the support of a majority of the votes cast by its members.

(7) If the National Forum does not adopt a resolution finding that one of the grounds in Subsection (1) has been met in respect of a judge within seven days of the date on which removal proceedings commenced, or instead adopts a resolution to the effect that none of those grounds were met, the removal proceedings lapse.

(8) The National Forum may extend the time limit for the adoption of a resolution contemplated in Subsection (6) by no more than seven days through a motion for that purpose with the support of at least one-third of its members.

(9) Proceedings to remove a judge lapse if the judge has vacated office after the commencement of the proceedings, but the National Forum may sustain the proceedings by adopting a resolution contemplated in Subsection (6) finding that the ground of serious misconduct has been met in respect of the judge.

(10) If the National Forum adopts a resolution finding that one of the grounds in Subsection (1) has been met in respect of a judge—
(a) a national referendum must be held to decide whether to remove the judge from office in consequence of such resolution; and
(b) the President may suspend the affected judge from office until the national referendum is decided.

(11) The Minister of the Interior must open voting in a national referendum contemplated in Subsection (10)(a) to all citizens on the day after the adoption of a corresponding resolution. The Minister must ensure that such voting complies with the following:

(a) Only two choices, one to support the removal of the relevant judge, and one to oppose such removal, must be available in the voting.

(b) The procedure for single-winner standard voting must be used.

(c) Voting must—

(i) be conducted by secret ballot; and

(ii) last for 48 hours.

(12) The Minister of the Interior must declare the results of a national referendum contemplated in Subsection (10)(a) as soon as possible after the close of voting. The President must remove the relevant judge if, on conclusion of the referendum, the removal of that judge receives the support of at least three-fifths of votes cast by citizens.

(13) A removal of a judge constitutes impeachment if it is effected in consequence of a resolution finding that the ground of serious misconduct was established in respect of the judge. A judge who has been impeached—

(a) may not hold any public office for 90 days after the date on which they were impeached; and

(b) is not eligible to serve as an acting judge on account of any terms they have served as an elected judge up until the date of their impeachment.

END OF ARTICLE VI

ARTICLE VII

PROSECUTORIAL AUTHORITY

117. Prosecutors

(G: 41) Section 117 has been revised by the Fourth Constitutional Amendment, 2025.

(1) Prosecutors are appointed citizens vested with the prosecuting authority of the Republic regarding one or more cases, which entails the power—
   (a) to institute and conduct criminal proceedings on behalf of the State; and
   (b) to investigate crimes in coordination with the Department of Security.

(2) Prosecutors may only exercise prosecutorial authority with respect to those cases for which they are explicitly appointed.

(3) The appointment of a prosecutor must specify their domain of authority, which must be either—
   (a) a single case, or
   (b) a set of related cases.

118. Independence of prosecutors

(G: 42) Section 118 has been revised by the Fourth Constitutional Amendment, 2025.

(1) Prosecutorial authority is independent; prosecutors must exercise their powers and perform their functions impartially and without fear or favour.

(2) No person, juristic entity, or State institution may interfere with a prosecutor's lawful exercise of their prosecutorial authority.

(3) The executive and legislature must assist and protect prosecutors to ensure their independence, impartiality, dignity, accessibility, and effectiveness.

119. [Repealed]

(G: 43) Section 119 has been repealed by the Fourth Constitutional Amendment, 2025.

120. [Repealed]

(G: 44) Section 120 has been repealed by the Fourth Constitutional Amendment, 2025.

121. Appointment of prosecutors

(G: 45) Section 121 has been revised by the Fourth Constitutional Amendment, 2025.

(1) A prosecutor may be appointed when any criminal conduct is alleged to have occurred, with the ambit of—

(a) investigating the alleged criminal conduct;
(b) determining whether to bring criminal charges against any persons, and;
(c) presenting and arguing those criminal charges in court, if necessary.

(2) A prosecutor must be appointed regarding a matter if determined necessary by—
(a) the Cabinet,
(b) any two Members of the Forum acting in concurrence, or
(c) a private complainant, in accordance with Section 122.

(3) Except as specified in Subsection (5), the selection of an individual to serve as prosecutor regarding a matter is made by—
(a) the Cabinet, if the appointment of a prosecutor regarding the case(s) was determined necessary by the Cabinet, or
(b) a motion receiving the support of a majority of votes cast by Members of the Forum, otherwise.

(G: 46) "Party to prosecutorial proceedings" refers to either a defendant, or an individual determining the prosecution necessary as specified in Subsection (2).

(4) A party to prosecutorial proceedings may request relief from a court on the basis that an appointed prosecutor is unable or unwilling to fulfil their obligations as a prosecutor. If the court determines this to be the case, a new prosecutor must be appointed in accordance with Subsection (3).

(5) If the appointment of a prosecutor has been determined necessary but cannot be accomplished without unreasonable delay, a party to prosecutorial proceedings may request a court to appoint a prosecutor.

122. Private prosecutions

(G: 47) Section 122 has been revised by the Fourth Constitutional Amendment, 2025.

(1) A court may allow a complainant to institute and conduct proceedings in a criminal matter where both the Cabinet and National Forum have refused to prosecute the matter.

(2) A court may require the National Forum to appoint a prosecutor to assist a complainant who has instituted a private prosecution when this is in the interests of justice.

123. [Repealed]

(G: 48) Section 123 has been repealed by the Fourth Constitutional Amendment, 2025.

124. [Repealed]

(G: 49) Section 124 has been repealed by the Fourth Constitutional Amendment, 2025.

125. [Repealed]

(G: 50) Section 125 has been repealed by the Fourth Constitutional Amendment, 2025.

126. Loss of position as a prosecutor

(G: 51) Section 126 has been revised by the Fourth Constitutional Amendment, 2025.

(1) A person loses their position as a prosecutor upon—
  (a) the completion of their specified duties;
  (b) resigning from their position;
  (c) losing citizenship; or
  (d) being absent from the Republic for 14 days without providing any notice thereof.

(2) The notice contemplated in Subsection (1)(d) may be provided by the person concerned or by someone in their stead.

(3) If a prosecutor loses their position while their specified duties are incomplete, a new prosecutor must be appointed to complete their specified duties in accordance with Section 121(3).

127. Resignation of prosecutors

(G: 52) Section 127 has been revised by the Fourth Constitutional Amendment, 2025.

(1) A prosecutor may resign from their position at any time by making an announcement to the Nation for this purpose.

(2) If it becomes manifest that a prosecutor has resigned in an unequivocal manner other than that stipulated by this Section, that prosecutor is nonetheless considered to have resigned for the purposes of Cortesian law.

128. [Repealed]

(G: 53) Section 128 has been repealed by the Fourth Constitutional Amendment, 2025.

END OF ARTICLE VII

ARTICLE VIII

LOCAL GOVERNMENT

129. Supremacy of the National Government

(G: 54) Section 129 has been added by the Third Constitutional Amendment, 2024

(G: 55) Section 129 has been revised by the Fourth Constitutional Amendment, 2025.

(1) The Cortesian government has final authority on all matters pertaining to local governance. Local leaders have duty to carry out the directives of the national government as applicable.

130. Establishment of cities

(1) A city may be established by national legislation. Such legislation must provide for—
- (a) the area on which the city is to be situated;
- (b) the territorial boundaries of the city;
- (c) the structure of the local government of the city; and
- (d) mechanisms for the appointment and removal of local government officials.

(2) National legislation may—
- (a) revise the territorial boundaries of a city;
- (b) increase the area of a city;
- (c) decrease the area of a city;
- (d) transfer an area of a city into the area of another city;
- (e) establish a new city by—
  - (i) uniting two or more cities; or
  - (ii) separating an area from an existing city;
- (f) designate an area to be under the shared control of two or more cities; and
- (g) disestablish a city.

(3) When the National Forum considers a bill which deals with any of the matters contemplated in Subsection (2), the following conditions apply:
- (a) Such a bill may not amend this Constitution.
- (b) In addition to the process for passing an ordinary bill, which is set out in Section 56, the National Forum must submit the final version of the bill to all local governments that may be directly affected by the bill for their assent.

(c) A local government to which a bill has been submitted for assent must, without unreasonable delay, assent to the bill or refer it back to the National Forum with its reservations.

(d) If all local governments to which a bill has been submitted for assent have subsequently assented to the bill, the National Forum may pass the bill in accordance with Section 56.

(e) If a local government has referred a bill back to the National Forum, the National Forum may—

(i) amend the bill and submit it to the local government for assent again; or

(ii) pass the bill in accordance with Section 56, but the number of votes required to do so by Section 56(5) does not apply. Instead, the support of at least two-thirds of the votes cast by Members of the Forum is required for the bill to pass.

(G: 56) Subsection (4) has been added by the Third Constitutional Amendment, 2024.

(G: 57) Subsection (4) has been revised by the Fourth Constitutional Amendment, 2025.

(4) National legislation dependent on the establishment of a city may become void should that city be disestablished.

131. Powers and functions of local governments

(1) Local governments are entitled, in accordance with national laws and policies, to govern, administer, and represent their corresponding cities in respect of the matters contemplated in Subsection (2) and any other matters assigned to the local government for this purpose by the national government.

(2) Unless a national law or policy indicates otherwise, the following matters within a city are under the control of the corresponding local government:

(i) Urban and rural planning and development.

(ii) Regulation of construction.

(iii) Housing.

(iv) Infrastructure and transportation.

(v) Regulation of private land ownership.

(vi) Agricultural, industrial, or commercial matters.

(vii) Regulation of natural resources.

(viii) Any other matter reasonably incidental to a matter contemplated above.

(3) In exercising its power over a matter under its control, a local government may, subject to national laws and policies—

(a) formulate, implement, and maintain policies and standards concerning the matter; and
(b) issue and administer ordinances to regulate the matter.

(4) The national government must support and strengthen the capacity of local governments to perform functions assigned to them.

132. Assignment of matters to a local government

(1) The Cabinet may assign, by agreement and subject to any appropriate conditions, a matter under its control or the control of one of its members to a local government.

(2) National legislation may assign to a local government any matter not assigned by this Constitution.

(3) A matter may only be assigned to a local government in terms of this Section if—
(a) the matter would most effectively be governed and administered by the local government; and
(b) the local government has the capacity to govern and administer the matter.

133. Intervention in local governments

(1) Notwithstanding any mechanisms for the appointment and removal of local government officials provided by national legislation, the National Forum may, through a resolution adopted with the support of at least two-thirds of the votes cast by its members—
(a) appoint a person to a vacant office in the local government of a city;
(b) dismiss a person from a local government office; and
(c) dissolve a local government.

(2) A resolution adopted by the National Forum to exercise a power envisaged in Subsection (1) supersedes any mechanisms for the appointment and removal of local government officials provided by national legislation.

(3) The national government must respect the powers and functions of local governments and strive to intervene in a local government matter specified in Section 131(2) only when this is necessary—
(a) to ensure compliance with national laws, policies, or standards;
(b) to maintain national security;
(c) to maintain economic unity; or

(d) to prevent unreasonable action taken by a city which is prejudicial to the interests of another city or to the Nation as a whole.

134. Capital city

(1) The Cabinet is collectively responsible for directly governing, administering, and representing the capital city. National legislation may not detract from this power.

(2) The governance of the capital city must strive to achieve the following aspirations:

(a) Harmonisation of the composite national vision for aesthetical and cultural development.

(b) Conditions that promote for all Cortesians—

(i) welfare and a high standard of living;

(ii) a secure and safe environment to inhabit; and

(iii) inclusiveness and opportunities for participation.

(c) Facilitation of equal access to services provided by national government institutions.

(d) Availability of comfortable housing that meets individual preferences.

(e) Establishment of a hub of Cortesian culture and international economic and political activity.

END OF ARTICLE VIII

ARTICLE IX

CONTINGENCY GOVERNMENT

135. Periods of prorogation

(1) Whenever the National Forum is inoperative, a period of prorogation commences, during which—

(a) the institutions of the National Forum and the Cabinet are suspended;

(b) the Secretariat becomes operative; and

(c) the powers and functions of the National Forum and the Cabinet are exercised and performed in the manner set out in this Article.

(2) During a period of prorogation, citizens may still be elected to the National Forum as usual.

(3) Nothing in this Article detracts from the exercise by the citizenry of any powers ordinarily assigned to them by this Constitution.

(4) For the purposes of a period of prorogation, any powers, functions, or responsibilities of the National Forum not assigned by this Article are assigned to the citizenry.

(5) Any persons forming part of the Cortesian Republic Intelligence Agency's directorate immediately before a period of prorogation continue serving on the directorate, unless dismissed.

136. Secretariat

(1) The Secretariat consists of—

(a) all Members of the Forum holding office at the time the Secretariat became operative; and

(b) any citizens elected to the National Forum during the period of prorogation.

(2) The Secretariat is responsible for fostering conditions to ensure that an active period of prorogation ends as soon as possible.

137. Decisions of the Secretariat

(1) When a constitutional power or function of the National Forum is assigned to the Secretariat in a period of prorogation—

(a) any activity requiring a motion with the support of one-third of Members of the Forum instead requires the support of at least two members of the Secretariat; and

(b) any activity requiring the support of a majority of Members of the Forum instead requires approval from the Secretariat.

(2) Differences of opinion among members of the Secretariat must be resolved in accordance with Section 83, *mutatis mutandis*.

138. Processing of bills during a period of prorogation

(1) Bills may be passed during a period of prorogation in accordance with the procedural requirements set out in Article IV subject to any changes to those requirements specified in this Section.

(2) Any bill may be introduced during a period of prorogation by—

(a) a member of the Secretariat; or

(b) any other citizen, provided the introduction of the bill is supported by at least one additional citizen.

(3) In the stead of the corresponding requirements in Section 56, ordinary bills must be processed during a period of prorogation as follows:

(a) Voting on whether to pass an ordinary bill—

(i) takes place as a national referendum; and

(ii) may be opened by a member of the Secretariat, provided they have obtained the concurrence of another member of the Secretariat.

(b) An ordinary bill is passed by the citizenry if, on conclusion of voting in a corresponding national referendum initiated in terms of Paragraph (a), the bill receives the support of at least two-thirds of the votes cast by citizens.

(4) In the stead of the corresponding requirements in Section 57, bills amending this Constitution must be processed during a period of prorogation as follows:

(a) Voting on whether to pass a bill amending this constitution—

(i) takes place as a national referendum; and

(ii) may be opened by a member of the Secretariat, provided a majority of the members of the Secretariat support submitting the bill for a national referendum.

(b) A bill amending this Constitution is passed by the citizenry if, on conclusion of voting in a corresponding national referendum initiated in terms of Paragraph (a), the bill receives—

(i) the support of at least a majority of the votes cast by citizens; and

(ii) no more than one opposing vote.

(5) Any bill introduced during a period of prorogation lapses if—

(a) 14 days have gone by since the date of the introduction of the bill without voting on the bill being initiated; or

(b) the Secretariat has decided not to open voting on the bill.

139. Removal of officials during a period of prorogation

(1) For the purposes of a period of prorogation, any functions assigned by this Constitution to the National Forum during proceedings to remove or impeach a State official, excluding recall proceedings or confidence assessments, are instead assigned to the Secretariat.

(2) Nothing in this Section affects the operation of recall or confidence voting initiated by citizens in accordance with a provision of this Constitution.

(3) The procedures which may be applied to remove a Secretariat member are the same as those which applied to that member immediately before the Secretariat came into operation.

140. Executive authority in a period of prorogation

(1) During a period of prorogation, the Secretariat has any powers, functions, and responsibilities assigned to—

(a) individual Cabinet members, excluding the President and Vice President;

(b) the Cabinet as a whole; and

(c) the Premier Delegation.

(2) The President and Vice President retain, during a period of prorogation, all powers, functions, and responsibilities ordinarily assigned to them, unless this Article requires otherwise.

141. End of a period of prorogation

(1) A period of prorogation ends upon the National Forum becoming operative.

(2) Every Secretariat member at the time a period of prorogation ends is restored to the office of Member of the Forum and any Cabinet office they held before that period of prorogation commenced.

142. Inquorate Supreme Court

(1) Whenever the Supreme Court is inquorate, the President may, if they deem this necessary, nominate a citizen to serve as a judge until the Supreme Court would be quorate again without that judge.

(2) Whenever the President has nominated a citizen to serve as a judge in the circumstances anticipated in Subsection (1), the President must open

voting as soon as possible in the National Forum on whether to appoint that citizen. The President must ensure that such voting complies with the following:

(a) Only two choices, one to support the appointment of that citizen as a judge and one to oppose this appointment, must be available in the voting.

(b) The procedure for single-winner standard voting must be used.

(c) Voting must last for 24 hours.

(3) A citizen nominated to serve as a judge in the circumstances anticipated in Subsection (1) is appointed as a judge for the period envisaged in that Subsection if, on conclusion of voting on the appointment in the National Forum, the appointment receives the support of a majority of the votes cast by Members of the Forum.

143. [Repealed]

(G: 58) Section 143 has been repealed by the Fourth Constitutional Amendment, 2025.

144. Lack of Members of the National Trust

(1) If there are no citizens serving as Member of the National Trust, the President, or individuals appointed by the President, must hold primary ownership over all auxiliary apparatuses having a primary ownership characteristic.

(2) Upon the appointment of one or more Members of the National Trust in accordance with Section 187, primary ownership over all auxiliary apparatuses must be transferred to those Members.

145. Reformation of government

(1) If every public office is vacant, a citizen may voluntarily assume office as Chief Justice, provided that the citizen—

(a) has consulted with the rest of the citizenry;

(b) does not intend to stand as a candidate for President or Vice President in the forthcoming presidential election; and

(c) has held Cortesian citizenship for a longer period than any other citizen meeting the above criteria and prepared to voluntary assume this office.

(2) Once a citizen has assumed office as Chief Justice in accordance with Subsection (1), any persons holding control over one or more auxiliary apparatuses of the Republic must transfer any instances of such control to the Chief Justice.

(3) A person holding office as Chief Justice by virtue of Subsection (1) must arrange, without unreasonable delay, for a presidential election in accordance with Section 85.

(4) Once the persons elected respectively as President and Vice President, pursuant to the presidential election arranged in terms of Subsection (3), have assumed office, the Chief Justice must, in sequential order—

(a) transfer control over each auxiliary apparatus of the Republic to the President; and

(b) resign.

END OF ARTICLE IX

ARTICLE X

EFFECTIVE AND ETHICAL GOVERNANCE

146. Principles of government

(1) The government of the Republic must adhere to and foster the following principles:

(a) Democratic governance, involving—

(i) the representation of all citizens;

(ii) meaningful public participation;

(iii) the accordance of protection and respect to any expression of a minority viewpoint in a political discussion.

(b) Accountability.

(c) Constitutional supremacy and the rule of law.

(d) The best interests of the Republic and its people.

(e) Justice and fairness.

(f) Responsiveness.

(g) Transparency and openness.

(h) The need for informative, timely, and engaging communication.

(2) The government must ensure that every exercise of public power—

(a) has a legal basis; and

(b) is rationally connected to its purpose.

147. Cooperative governance

(1) All State institutions must strive to cooperate with one another with a view to—

(a) consolidate peace and national unity;

(b) provide an effective, transparent, accountable, and coherent government for the Republic; and

(c) secure the welfare of the people of the Republic.

(2) State institutions must—

(a) respect the constitutional status, powers, and functions of other State institutions;

(b) not assume any power or function except those conferred on them in terms of this Constitution;

(c) exercise their powers and perform their functions in a manner that does not encroach on the functional or institutional integrity of another State institution; and

(d) assist and support each other by—

(i) fostering friendly relations;
(ii) informing one another of, and consulting one another on, matters of common interest;
(iii) coordinating their activities with one another;
(iv) adhering to agreed procedures; and
(v) seeking to avoid legal proceedings against one another.

(3) Any State institution involved in an intergovernmental dispute must make every reasonable effort to settle the dispute by means of mechanisms and procedures provided for that purpose, and must exhaust all other remedies before it approaches a court to resolve the dispute.

(4) If a court is not satisfied that the requirements of Subsection (3) have been met, it may refer a dispute back to the State institutions involved.

148. Ethical governance

(1) National legislation may prescribe a code of ethics for every State institution, which that institution's officials must act in accordance with.

(2) A State institution may adopt its own code of ethics when there is no national legislation for that purpose.

(3) No State official may—

(a) use their office, or any information entrusted to them by virtue of their office, to improperly benefit themselves or another person;
(b) publish sensitive government information without the required authorisation, unless this is necessary to expose improper government conduct;
(c) disclose sensitive government information to a foreign party without the required authorisation;
(d) improperly influence the casting of any vote; or
(e) culpably expose themselves to any situation involving a risk of a conflict between their official responsibilities and private interests.

END OF ARTICLE X

ARTICLE XI

NATIONAL DOMAIN

149. National territory

(1) The territory of the Republic consists of—

(a) cities; and

(b) unincorporated territory.

(2) Unincorporated territory consists of all areas outside of cities.

(3) The Cabinet is collectively responsible for governing, administering, and representing areas falling under unincorporated territory.

(4) National legislation must demarcate the territorial boundaries of the Republic.

(5) Subject to Section 130(2), and on conclusion of an international agreement if necessary, national legislation may—

(a) revise the territorial boundaries of the Republic;

(b) increase the area of the Republic;

(c) decrease the area of the Republic; and

(d) separate an area from a city so as to include that area in unincorporated territory.

150. Auxiliary apparatuses

(G: 59) "Auxiliary apparatus" means any apparatus used for communications or to facilitate the exercise and performance of constitutional powers and functions.

(G: 60) "Control", when referring to an auxiliary apparatus, means the highest level of control accorded to an end-user over the apparatus, except for primary ownership.

(1) An auxiliary apparatus may be incorporated as a sphere of the Republic by national legislation or presidential proclamation if—

(a) the apparatus serves a national purpose;

(G: 61) Paragraph (b) has been revised by the Fourth Constitutional Amendment, 2025.

(b) control over the apparatus lies with—

(i) the President; or

(ii) a State institution operating that utility to assist in the performance of its functions; and

(G: 62) Paragraph (c) has been added by the Fourth Constitutional Amendment, 2025.

(c) primary ownership of the apparatus lies exclusively with the National Trust, if the apparatus requires one or more primary owners.

(2) Conduct on an auxiliary apparatus of the Republic is for all purposes conduct in the Republic.

(3) The national executive and national legislature, through the powers assigned to them respectively, must ensure that auxiliary apparatuses are established and incorporated to facilitate the exercise and performance of all constitutional powers and functions.

(4) In order to regulate conduct in an auxiliary apparatus of the Republic, rules may be made and enforced, in accordance with national laws, by—

(G: 63) Paragraph (a) has been revised by the Fourth Constitutional Amendment, 2025.

(a) the Cabinet collectively, if control over the apparatus lies with the President; or

(G: 64) Paragraph (b) has been revised by the Fourth Constitutional Amendment, 2025.

(b) a State institution, if control over the apparatus lies with that institution.

(5) If a person has vacated an office by virtue of which they are holding control over one or more auxiliary apparatuses of the Republic, that person must transfer each instance of such control to the next holder of that office.

151. Diplomatic missions

(1) A foreign state may be allocated land by a competent authority to establish a diplomatic mission. The President, as the head of State, is responsible for recognising foreign diplomatic missions.

(2) Land on which a diplomatic mission has been established remains subject to the law of the Republic.

END OF ARTICLE XI

ARTICLE XII

COMMERCE

152. Economic policy

(1) The Cabinet is collectively responsible for the formulation, implementation, and maintenance of the Republic's economic policy.

(2) The economic policy of the Republic must strive—

(a) to advance the welfare of the Nation;

(b) to stimulate diverse entrepreneurial undertakings; and

(c) to foster conditions which—

(i) promote sustainable development, economic growth, and innovation;

(ii) achieve fair competition; and

(iii) encourage lawful commercial activity in domestic markets.

(3) National legislation may be enacted to regulate economic policy.

153. Taxation

(G: 65) Section 153 has been revised by the Fourth Constitutional Amendment, 2025.

(1) The power to levy taxes is vested exclusively in the National Forum.

(2) "Tax" for the purposes of this Section means a compulsory payment imposed by the State for the primary purpose of raising revenue.

(3) The National Forum must provide to all nationals a clear summary of how any revenue collected via taxes is being used.

(4) While preparing a bill modifying taxation policy, the National Forum must consult with any parties directly affected by that modification.

(5) Any taxation policy passed by the National Forum must not come into legal force until at least 14 days after its passage.

154. National treasury

(G: 66) "National funds" means the sum of currency and material wealth owned by the State on a given server, applied within the context of that server.

(1) The national treasury constitutes the sum of stored national funds.

(2) The Cabinet is collectively responsible for administering the national treasury in accordance with national laws.

(3) The national executive and national legislature, through the powers assigned to them respectively, are responsible for taking measures—

(a) to raise national revenue; and

(b) to protect the national treasury.

(4) Subject to any national policies and laws regulating expenditure, Cabinet members may—

(a) expend national funds in the public interest; and

(b) approve expenditures of national funds in the public interest.

(5) National policies or laws may predetermine practical criteria under which an expenditure of national funds by a Cabinet member—

(i) requires the provision of written notice; or

(ii) requires prior approval from the Cabinet or the National Forum.

(6) National legislation may be enacted—

(a) to appropriate national funds; or

(b) to prescribe conditions under which a State institution other than the Cabinet may expend national funds.

(7) The national government must ensure that national funds are expended in a cost-effective manner.

155. Public storages

(1) For the purposes of this Section—

(a) the national treasury is not a public storage; and

(b) any commodity money stored in a public storage is not included in the national funds.

(2) A building may be designated as a public storage by—

(a) a national law;

(b) the local government of a city if the building is situated in that city; or

(c) the Cabinet if the building is situated in an unincorporated territory.

(3) The goods stored in public storages belong to the community. To this end, every national—

(a) has the right to take goods from a public storage; and

(b) has the duty—

(i) to safeguard public storages;

(ii) to strive to keep public storages replenished; and

(iii) to take goods from public storages in a responsible manner.

(4) The authority governing the area in which a public storage is situated may set practical criteria to predetermine when a taking of goods from that storage—

(i) requires the provision of written notice; or

(ii) requires the prior approval of that authority.

156. Contracts

(1) Everyone has the right to conclude contracts in accordance with the law. National legislation must be enacted to provide a framework for the conclusion and enforcement of contracts.

(2) To the extent national legislation does not completely provide for the framework contemplated in Subsection (1), a court may be approached to certify or enforce a written contract.

157. Juristic entities

National legislation must provide a framework for the establishment, recognition, and operation of any type of juristic entity with a lawful purpose.

END OF ARTICLE XII

ARTICLE XIII

FOREIGN AFFAIRS

158. Diplomatic objectives

(1) The conduct of foreign affairs on behalf of the Republic of Cortesia Del Mar must reflect the national aspiration for internationalism, world peace, and friendly relations.

(2) Diplomacy constitutes the Republic's foremost instrument of conflict resolution in all foreign matters.

159. Premier Delegation

(1) The Premier Delegation is vested with the authority—

(a) to formulate, implement, and maintain the Republic's foreign policy in accordance with the law; and

(b) to conduct foreign affairs on behalf of the Republic, including by—

(i) negotiating and, where authorised, concluding international agreements;

(ii) participating in international and alliance dialogues;

(iii) meeting with foreign dignitaries; and

(iv) strengthening the Republic's international relations.

(2) The Premier Delegation may authorise diplomats to exercise the power in Subsection (1)(b) in accordance with its directions.

(3) The Premier Delegation consists of—

(a) the President;

(b) the Vice President; and

(c) the Minister of Foreign Affairs.

(4) In the exercise of its authority, the Premier Delegation must advance the best interests of the Republic and its people as a whole.

(5) Where a difference of opinion arises among members of the Premier Delegation, a matter may be referred to the Cabinet for deliberation and resolution.

160. [Repealed]

(G: 67) Section 160 has been repealed by the Third Constitutional Amendment, 2024.

161. International agreements

(1) International agreements concluded on behalf of the Republic must be entered into in accordance with this Section. Legally binding agreements

only bind the Republic to the extent they are consistent with this Constitution.

(2) Except where this Constitution specifies otherwise, the Premier Delegation may conclude an international agreement on behalf of the Republic without approval from the National Forum or a national referendum if—

(a) national legislation specifically permits the Premier Delegation to conclude the agreement without such approval;

(b) the agreement does not require either ratification or accession; or

(c) the agreement solely involves a matter of international concern under the control of the national executive.

(3) Before the Premier Delegation concludes an international agreement in terms of Subsection (2), it must—

(a) consult every Cabinet member whose functions or responsibilities under their portfolio are involved in the agreement;

(b) refer any differences of opinion with an involved Cabinet member to the Cabinet for deliberation and resolution;

(c) obtain the assent of—

(i) the local government of every city whose rights, legal interests, or obligations are directly involved in the agreement; and

(ii) every national whose rights, legal interests, or obligations are directly involved in the agreement; and

(d) inform the National Forum of the particulars of the agreement and consult with any of its available members.

(4) If the Premier Delegation is unable to obtain the assent required to conclude an international agreement contemplated in Subsection (2), it may submit that agreement to the National Forum for approval. If such an agreement is subsequently approved by the National Forum, the agreement is considered to have been concluded in terms of Subsection (2) for the purposes of Cortesian law.

(5) The Premier Delegation has the authority to withdraw on behalf of the Republic from an agreement that was entered into pursuant to Subsection (2), but before doing so—

(a) must consult—

(i) every local government whose assent was required for the conclusion of that agreement; and

(ii) every national whose assent was required for the conclusion of that agreement; and

(b) must inform the National Forum of this intention and consult with any of its available members.

(6) The Premier Delegation must submit the following types of international agreement to the National Forum for approval before it may conclude such an agreement:

(G: 68) Paragraph (a) has been revised by the Second Constitutional Amendment, 2023.

(a) Any international agreement involving one or more of the following subject matters:

(i) Formation of an alliance that does not include a commitment to collective security or defence.

(ii) Imposition of economic reprisal.

(iii) Development or maintenance of security or defensive capacity together with other states that does not include a commitment to collective security or defence.

(iv) Commitment to non-aggression.

(v) Declaration of an armistice or truce.

(vi) Declaration of a change in the relationship between the Republic and another state or an international organisation.

(b) Any international agreement for which the Premier Delegation determines the approval of the National Forum to be appropriate, taking into account the extent to which the agreement—

(i) affects the rights, legal interests, or obligations of nationals taken as a whole;

(ii) changes the relationship between the Republic and another state or an international organisation;

(iii) requires formal approval from the Nation;

(iv) requires prompt conclusion; or

(v) requires the enactment of national legislation to take effect.

(c) Any other international agreement that national legislation requires the National Forum to approve before the agreement may be concluded.

(7) The National Forum may approve an international agreement contemplated in Subsection (6)—

(a) by adopting a resolution for this purpose with the support of at least three-fifths of the votes cast by its members; or

(b) by passing an ordinary bill to give effect to the agreement to the extent the agreement is not self-executing.

(8) The Premier Delegation must submit any international agreement involving either of the following subject matters for approval by way of a national referendum before it may conclude such an agreement:

(a) Commitment to collective security or defence.

(b) Declaration of a permanent end to a war.

(9) Voting in a national referendum contemplated in Subsection (8) may only be opened by the President. The President must determine an appropriate time limit for such voting.

(10) An international agreement submitted to a national referendum is approved if it receives the support of a majority of the votes cast by citizens.

(11) The National Forum may require the Premier Delegation to withdraw on behalf of the Republic from any international agreement through a resolution adopted with the support of a majority of the votes cast by Members of the Forum. The Nation must be given notice of at least 24 hours before such a resolution may be voted on, unless the President or the National Forum, by a motion with the support of at least one-third of its members, determines that voting on the resolution is urgent.

(12) Before the National Forum votes on a resolution proposing that the Republic withdraws from an international agreement, a national referendum may be initiated to decide the question in the stead of the National Forum at the instance of—

(a) the President, by proclamation;

(b) a motion with the support of one-third of Members of the Forum; or

(c) a petition with the support of one-quarter of citizens.

(13) If the requirements for a national referendum contemplated in Subsection (12) have been met, voting in the referendum must be opened to all citizens as soon as possible by—

(a) the President if the referendum is initiated at the instance of their proclamation;

(b) any Cabinet member if the referendum is initiated at the instance of a petition which does not designate a specific person to open voting; or

(c) a person specifically designated by the initiating petition.

(14) Voting in a national referendum contemplated in Subsection (12) must comply with the following:

(a) Only two choices, one to support withdrawal from the relevant international agreement and one oppose such withdrawal, must be available in the voting.

(b) The procedure for single-winner standard voting must be used.

(c) Voting must last for 48 hours.

(15) The Chief Justice must declare the results of a national referendum contemplated in Subsection (12) as soon as possible after the close of voting. The Premier Delegation must withdraw on behalf of the Republic from the relevant international agreement if, on conclusion of the referendum, such withdrawal receives the support of a majority of the votes cast by citizens.

END OF ARTICLE XIII

(16)

ARTICLE XIV

NATIONAL SECURITY

162. National security institutions

(1) The national security institutions of the Republic are—

(a) the Armed Forces; and

(b) the Cortesian Republic Intelligence Agency.

(2) The objectives of the national security institutions of the Republic are—

(a) to protect the constitutional order;

(b) to protect the territorial integrity of the Republic;

(c) to defend the Republic and its people;

(d) to preserve peace; and

(e) to ensure that force is only used to resolve a conflict when all peaceful alternatives have been exhausted.

163. Armed Forces

(1) The Cortesian Armed Forces consists of persons volunteering as military personnel.

(2) The Armed Forces are subject to—

(a) the commanding authority—

(i) of the Minister of Security during times of peace; and

(ii) of the President during times of war; and

(b) any national legislation regulating military activities.

(3) The Minister of Security is responsible, in accordance with national laws, for—

(a) formulating, implementing, and maintaining military policy; and

(b) organising the Armed Forces.

(4) The Armed Forces may only be deployed—

(a) during a state of war; or

(b) to assist in securing a lawful arrest.

(5) The Armed Forces established by this Constitution are the only lawful military force in the Republic.

164. Policing authority

(1) In the Republic, policing authority entails—

(a) the power to investigate alleged crimes, which is vested in the Minister of Security in general, and in appointed prosecutors with respect to their domain of authority; and

(b) the power to conduct arrests in accordance with the law, which—

(i) is vested in all Cabinet members; and

(ii) is conditionally vested in all other persons in the circumstances set out in Subsections (3) and (4).

(2) If there is a reasonable apprehension that a person is biased in respect of an investigation of an alleged crime, that person may not be involved in that investigation. The National Forum must oversee the fulfilment of this Subsection.

(3) Anyone has the power to arrest a person when authorised to do so—

(a) by a member of the Cabinet; or

(b) by a national law.

(4) Anyone has the power to arrest a person without prior authorisation if—

(a) that person—

(i) is reasonably believed to be in the act of committing a criminal offence under Cortesian law; or

(ii) is reasonably believed to have committed a criminal offence under Cortesian law; and

(b) prior authorisation cannot be obtained timeously.

(5) Before any arrest is conducted, a reasonable effort must be made in the circumstances to ascertain that the arrest is necessary.

(6) National legislation must be enacted to criminalise—

(a) any tampering with evidence intended to obstruct the fulfilment of a criminal justice process; and

(b) the making of any arrests in a manner inconsistent with this Section.

165. Cortesian Republic Intelligence Agency

(1) The Cortesian Republic Intelligence Agency is responsible for coordinating intelligence and counterintelligence services.

(G: 69) "Agency" in this Section means the Cortesian Republic Intelligence Agency.

(2) The Agency consists of a directorate and any persons appointed as its operatives.

(3) The directorate of the Agency consists of—

(a) the President;

(b) the Vice President;

(c) the Minister of Foreign Affairs;

(d) the Minister of Security;

(e) the Minister of the Interior; and

(f) any other citizen appointed to it.

(4) The Agency's directorate is responsible for—

(a) administering and exercising control over the Agency;

(b) formulating, implementing, and maintaining the intelligence policy of the Republic; and

(c) appointing and dismissing operatives of the Agency.

(5) The Agency's directorate may only dismiss directorate members appointed in terms of Subsection (3)(f).

(6) Operatives of the Agency must report only to the directorate.

(7) In the conduct of intelligence services, the Agency may not do anything detrimental to the interests of the Republic or its people.

(8) The Agency must—

(a) declassify and publish any information it holds whose release will not adversely affect legitimate and substantial security or privacy interests; and

(b) provide classified information it holds to a State institution if the information may assist that institution in the performance of its functions. A State institution receiving such information must safeguard the secrecy of that information.

(9) The Agency directorate may determine whether to release information requested by a State institution, but the National Forum may override this determination by a resolution adopted with the support of two-thirds of the votes cast by its members.

(10) Where a difference of opinion arises among members of the Agency's directorate, the decision of the President prevails, but the Vice President together with a majority of other members of the directorate may override the decision of the President.

166. Ethical obligations of national security personnel

(1) No member of any national security institution may issue or carry out a manifestly unlawful order.

(2) National security institutions may not advance or prejudice any political cause.

167. State of war

(G: 70) *"Armed conflict" means any situation involving the use of armed force between two or more organised groups of a military nature.*

(1) A state of war must be declared whenever deployment of the Armed Forces is required for the primary purpose of using force in an armed conflict.

(2) Only the President may declare a state of war, but before doing so, the President must obtain approval in the manner specified below:

- (a) If the President determines that the declaration is urgent in the circumstances, they must—
  - (i) obtain the concurrence of a Cabinet Member; and
  - (ii) consult with any available Members of the Forum.
- (b) In all other circumstances, the President must obtain the approval of the National Forum through a resolution adopted with the support of two-thirds of the votes cast by its members.

(3) Whenever the President has declared a state of war with only the approval contemplated in Subsection (2)(a), they must open voting as soon as possible in the National Forum on whether to sustain the state of war. The President must ensure that such voting complies with the following:

- (a) Only two choices, one to support sustaining the state of war and one to oppose it, must be available in the voting.
- (b) The procedure for single-winner standard voting must be used.
- (c) Voting must last for 24 hours.

(4) A state of war lapses on conclusion of voting in terms of Subsection (3) unless at least two-thirds of the votes cast by Members of the Forum support sustaining the state of war.

(5) When the President declares a state of war, they must promptly inform the Nation, in sufficient detail—

- (a) of the reasons for the declaration; and
- (b) of any groups against which the war is declared.

(6) If the President deems it necessary during a state of war to declare war against any group not mentioned pursuant to Subsection (5), the President may declare war against that group—

- (a) without any further approval if this declaration is incidental to any existing declarations of war; or
- (b) in accordance with Subsection (2) if this declaration is not incidentally related to any existing declarations of war.

(7) Any deliberations or voting by the National Forum concerning the declaration of a state of war may be done in a closed sitting.

168. State of defence

(1) The President, with the concurrence of the Vice President, may declare a state of defence during a state of war when—

(a) an armed attack or invasion threatens the life of the Nation; and

(b) the powers provided by this Section are necessary to restore peace and order.

(2) Whenever the President has declared a state of defence, they must open voting to all citizens in a national referendum as soon as possible on whether to sustain the state of defence. The President must ensure that such voting complies with the following:

(a) Only two choices, one to support sustaining the state of defence and one to oppose it, must be available in the voting.

(b) The procedure for single-winner standard voting must be used.

(c) Voting must last for 24 hours.

(3) A state of defence lapses on conclusion of voting in terms of Subsection (2) unless at least two-thirds of the votes cast by citizens support sustaining the state of defence.

(4) During a state of defence, the President may exercise legislative powers by way of proclamation to take any measures urgently required for the welfare, safety, or security of the Nation in the circumstances.

(5) Upon issuing a proclamation in terms of Subsection (4), the President must open voting as soon as possible in the National Forum on whether to sustain the proclamation. The President must ensure that such voting complies with the following:

(a) Only two choices, one to support sustaining the proclamation and one to oppose such sustenance, must be available in the voting.

(b) The procedure for single-winner standard voting must be used.

(c) Voting must last for 24 hours.

(6) A proclamation issued in terms of Subsection (4) lapses on conclusion of voting by the National Forum on whether to sustain the proclamation unless a majority of the votes cast by Members of the Forum support sustaining the proclamation.

(7) Any national may apply directly to the Supreme Court, at any time during a state of defence, for an order declaring all or part of a proclamation issued in terms of Subsection (4) constitutionally invalid.

(8) The Supreme Court may order that all or part of a proclamation that is the subject of an application in terms of Subsection (7) is to be inoperative until the Court has decided the application if—

(a) the interests of justice require this; and
(b) the application has a reasonable prospect of success.

(9) All proclamations issued in terms of Subsection (4) lapse on conclusion of the state of defence during which they were issued.

(10) During a state of defence—
(a) all conduct remains subject to this Constitution;
(b) no amendment may be made to this Constitution; and
(c) no law may be enacted to indemnify the State, any person, or any juristic entity, in respect of any unlawful conduct.

169. Conclusion of a state of war

(1) A state of war ends only once the Republic has permanently withdrawn from using force in all armed conflicts in which it was involved. An armistice or truce does not end a state of war.

(2) A declaration of war against a group ends—
(a) once an international agreement for this purpose has been concluded;
(b) upon the President issuing a proclamation for this purpose;
(c) upon the National Forum adopting a resolution for this purpose with the support of a majority of the votes cast by its members; or
(d) upon a majority of the votes cast by citizens supporting this at the close of a national referendum contemplated in Subsection (3).

(3) A national referendum may be initiated to decide whether to end a particular declaration of war at the instance of a petition with the support of one-quarter of citizens. Once a petition for this purpose receives the requisite support, voting in such a referendum must be opened as soon as possible by—
(a) any Cabinet member if the referendum is initiated at the instance of a petition which does not designate a specific person to open voting; or
(b) a person specifically designated by the initiating petition.

(4) Voting in a national referendum contemplated in Subsection (3) must comply with the following:
(a) Only two choices, one to support ending the declaration of war and one to oppose ending that declaration, must be available in the voting.
(b) The procedure for single-winner standard voting must be used.
(c) Voting must last for 48 hours.

(5) The Chief Justice must declare the results of a national referendum contemplated in Subsection (3) as soon as possible after the close of voting.

170. Conclusion of a state of defence

(1) A state of defence ends if the Republic is no longer in a state of war.

(2) A state of defence may otherwise be ended at the instance of—

(a) the President, by proclamation;

(b) the National Forum, through a resolution adopted with the support of a majority of the votes cast by its members; or

(c) the citizenry, in accordance with a national referendum initiated in terms of Subsection (2).

(3) A national referendum may be initiated to decide whether to end a state of defence at the instance of a petition with the support of one-quarter of citizens. Once a petition for this purpose receives the requisite support, voting in such a referendum must be opened as soon as possible by—

(a) any Cabinet member if the referendum is initiated at the instance of a petition which does not designate a specific person to open voting; or

(b) a person specifically designated by the initiating petition.

(4) Voting in a national referendum contemplated in Subsection (2) must comply with the following:

(a) Only two choices, one to support ending the state of defence and one to oppose ending the state of defence, must be available in the voting.

(b) The procedure for single-winner standard voting must be used.

(c) Voting must last for 24 hours.

(5) The Chief Justice must declare the results of a national referendum contemplated in Subsection (3) as soon as possible after the close of voting. A state of defence ends if, on conclusion of the referendum, a majority of the votes cast by citizens support ending the state of defence.

171. [Repealed]

(G: 71) Section 171 has been repealed by the Third Constitutional Amendment, 2024.

172. [Repealed]

(G: 72) Section 172 has been repealed by the Third Constitutional Amendment, 2024.

END OF ARTICLE XIV

ARTICLE XV

173. Title

This Constitution may be cited as "Constitution of the Republic of Cortesia Del Mar, 2022".

174. Commencement

(1) This Constitution comes into effect on a date set by the person holding office as President at the time this Constitution is enacted, but this date may not be later than 1 November 2022.

(2) Any laws in force at the time immediately before this Constitution comes into effect, except treaties concluded on behalf of the Republic, are repealed.

175. Standardisation of dates

Any dates in this Constitution must be construed to begin and end according to Greenwich Mean Time.

176. Definitions

(1) "Fundamental values" means the values referred to in Section 1(2).

(2) "Conduct", unless the context requires otherwise, means an act or omission.

(3) "National legislation" includes any statutory instruments made either under this Constitution or an enactment by the National Forum.

(4) "State institution" means any institution exercising a public power or performing a public function.

(5) "Property" includes immovable property, movable property, and any other property recognised by law.

(6) "Choice", in reference to voting, does not include abstention

(7) "Private Member" means a member of the National Forum who is not a member of the Cabinet.

(8) "Judge", unless the context requires otherwise, includes the Chief Justice, any elected judge, and any acting judge.

(9) "Auxiliary apparatus" means any apparatus used for communications or to facilitate the exercise and performance of constitutional powers and functions.

(G: 73) Subsection (10) has been revised by the Fourth Constitutional Amendment, 2025.

(10) "Control", when referring to an auxiliary apparatus, means the highest level of control accorded to an end-user over the apparatus, except for primary ownership.

(G: 74) Subsection (11) has been added by the Fourth Constitutional Amendment, 2025.

(11) "Primary ownership", when referring to an auxiliary apparatus possessing such a characteristic, means a level of access according the end-user the ability to remove access to the apparatus from all other users not possessing primary ownership, while not being able to be removed from access by anyone not possessing primary ownership.

(G: 75) Subsection (12) has been revised by the Fourth Constitutional Amendment, 2025.

(12) "National funds" means the sum of currency and material wealth owned by the State on a given server, applied within the context of that server.

(13) "Armed conflict" means any situation involving the use of armed force between two or more organised groups of a military nature.

(14) Unless the context requires otherwise, any terms derived from a definition in this Section have a corresponding meaning in this Constitution.

177. Calculations

If the result of a calculation performed to fulfil a provision in this Constitution is not a whole number, that result must be rounded off to the nearest natural number greater than it.

178. Statutory instruments

(1) Every statutory instrument must specify its legal basis.

(2) Statutory instruments must be published in a manner easily accessible to the public. No statutory instrument may be in force without such accessibility.

179. Interpretation of this Constitution

(1) The provisions of this Constitution must be interpreted harmoniously. Each provision must be considered in the light of the whole text of the Constitution, and interpretations that render any provision to be inconsistent with another must be avoided.

(2) The ideal of a free, peaceful, and democratic society based on the fundamental values specified in Section 1(2) must be accorded paramount importance in the making of any normative determination required by this Constitution.

(3) A court may make use of any persuasive legal source consistent with the ideal of a free, peaceful, and democratic society based on the fundamental values specified in Section 1(2) to inform its interpretation of a provision in this Constitution.

180. Officials Emeritus

(1) The National Forum may designate a person who has retired from public office, by a resolution adopted with the support of at least two-thirds of the votes cast by its members, as a holder of an office *emeritus* if the National Forum determines that this is appropriate to honour the person's contributions to the Nation in that office, including lengthy or distinguished service.

(2) A holder of office *emeritus* may not exercise or perform any of the powers or functions of that office, but may remain an advisory member of any State institution, excluding the judiciary, in which that office entitled them to hold membership.

181. Re-establishment of the Republic

(1) If a significant group of Cortesians no longer deem the server on which they reside inhabitable, the group may re-establish the Republic elsewhere with a view to sustain the life of the Nation and its culture and heritage.

(2) Any provisions of this Constitution that are inapplicable outside of the context of the given server are suspended for the purposes of a group in the process of re-establishing the Republic as contemplated in Subsection (1).

END OF ARTICLE XV

ARTICLE XVI

TRANSITIONAL PROVISIONS

182. Formation of a new government

(1) For the purposes of Subsections (2) to (4), the President is the person holding office as President at the time this Constitution is enacted. This President has only the powers necessary to perform the functions specified by those Subsections.

(2) Immediately after this Constitution comes into effect—

(a) all persons holding public office, except the President, must resign; and

(b) the President must appoint a person as the Chief Justice, provided that person—

(i) agrees to be named for this purpose;

(ii) does not intend to stand as a candidate for President or Vice President in the forthcoming presidential election; and

(iii) has held Cortesian citizenship for a longer period than any other person meeting the above criteria.

(3) Once the President has appointed a Chief Justice in terms of Subsection (1)(b), the President must, in sequential order—

(a) incorporate, in accordance with Section 145(1), all auxiliary apparatuses meeting the criteria in that Section;

(b) transfer control over each auxiliary apparatus of the Republic to the Chief Justice; and

(c) resign.

(4) Once the President has resigned, the Chief Justice must arrange, without unreasonable delay, for a presidential election in accordance with Section 85.

(5) Once the persons elected respectively as President and Vice President, pursuant to the presidential election arranged in terms of Subsection (3), have assumed office, the Chief Justice must, in sequential order —

(a) transfer control over each auxiliary apparatus of the Republic to the President; and

(b) resign.

183. Transitional judiciary

(1) Section 113 is suspended until 1 January 2023.

(2) Subsection (4) may only be applied until one or more persons have assumed office as the first judges elected in terms of Section 112.

(3) Any effects from the operation of Subsection (4) lapse upon that Subsection no longer being applicable.

(4) The President must appoint a citizen to serve as Chief Justice; but if no citizen agrees to be named for this purpose, the provisions of Article IX in respect of an inoperable judiciary apply.

184. [Repealed]

(G: 76) Section 184 has been repealed by the Fourth Constitutional Amendment, 2025.

185. Provisional criminal and civil law

(G: 77) Subsection (1) has been revised by the Second Constitutional Amendment, 2023.

(1) In the absence of national legislation specifying the conduct that constitutes a criminal offence, the courts may determine and apply, to the extent they are consistent with this Constitution, the general rules of criminal law established by widespread international practices.

(G: 78) Subsection (2) has been revised by the Second Constitutional Amendment, 2023.

(2) In the absence of national legislation providing for adequate civil remedies, the courts may apply the rules of equity.

END OF ARTICLE XVI

ARTICLE XVII

NATIONAL TRUST

(G: 79) Article XVII has been added by the Fourth Constitutional Amendment, 2025.

(G: 80) "Control", when referring to an auxiliary apparatus, means the highest level of control accorded to an end-user over the apparatus, except for primary ownership.

(G: 81) "Primary ownership", when referring to an auxiliary apparatus possessing such a characteristic, means a level of access according the end-user the ability to remove access to the apparatus from all other users not possessing primary ownership, while not being able to be removed from access by anyone not possessing primary ownership.

186. National Trust

(1) The National Trust is a strictly apolitical body for the exclusive purpose of retaining primary ownership over all auxiliary apparatuses possessing such a characteristic.

(2) The National Trust consists of Members of the National Trust.

(3) Primary ownership over an auxiliary apparatus is considered to be retained by the National Trust in terms of Subsection (1) if—

(a) primary ownership over the apparatus is held by at least one Member of the National Trust, and

(b) primary ownership over the apparatus is not held by anyone who is not a Member of the National Trust.

(4) The National Trust is responsible for facilitating the lawful administration of all auxiliary apparatuses placed in its care.

(5) The National Trust must accord control over an auxiliary apparatus to the person or persons entitled to such by Cortesian law.

187. Appointment of Members of the National Trust

(1) A referendum to appoint a Member of the National Trust is held whenever a citizen accepts a nomination with the support of at least two other citizens to be considered for appointment.

(2) The Chief Justice must designate a public channel, which must be easy for all citizens to access and utilise, to facilitate the nomination of citizens for appointment to the National Trust.

(3) An individual being considered for appointment to the National Trust may recuse themselves from consideration at any time.

(4) At least 72 hours must elapse between the acceptance of a nomination for membership in the National Trust and the corresponding referendum. Throughout this time, the Chief Justice must make any appropriate

arrangements to facilitate the ventilation of any submissions from the public concerning the candidate, including questions, comments, and objections.

(5) The Chief Justice must open voting to all citizens on whether to appoint an individual to the National Trust on the soonest suitable day within 14 days of the date the nomination was accepted that is conducive to the commencement of a free and fair election. The Minister must ensure such voting complies with the following:

(a) Only two choices, one to support the nomination and one to oppose the nomination, must be available in the voting.

(b) The procedure for single-winner standard voting must be used.

(c) Voting must—

(i) be conducted by secret ballot; and

(ii) last for 48 hours.

(d) An individual is appointed as a Member of the National Trust if, on conclusion of the national referendum initiated in terms of Subsection (5), that individual receives the support of at least three-quarters of votes cast by citizens.

188. Loss of Membership in the National Trust

(1) A person loses membership in the National Trust upon—

(a) Losing Cortesian citizenship;

(b) Resigning from office; or

(c) Being removed in accordance with Section 189.

(2) If a person loses membership in the National Trust, that person must cede primary ownership over any auxiliary apparatuses that they are holding to the remaining Members of the National Trust.

189. Removal of Members of the National Trust

(1) A referendum to remove a Member of the National Trust must take place after a petition to commence such a referendum receives the support of at least one-quarter of the citizenry, unless the relevant Member is the only Member of the National Trust.

(2) The Chief Justice must open voting to all citizens in a national referendum on whether to remove a Member of the National Trust once a petition envisaged in Subsection (1) has received the requisite support. The Chief Justice must ensure that such voting complies with the following:

(a) Only two choices, one to support the removal and one to oppose the removal, must be available in the voting.

(b) The procedure for single-winner standard voting must be used.

(c) Voting must—

(i) be conducted by secret ballot; and

(ii) last for 48 hours.

(3) The Chief Justice must declare the results of any removal referendum as soon as possible after the close of voting. The relevant Member of the National Trust loses membership in the National Trust if, on the conclusion of the voting, the recall of that Member receives the support at least three-quarters of votes cast by citizens.

END OF ARTICLE XVII

APPENDIX I

CONTINGENCY NATIONALITY PROVISIONS

190. Retention of nationality

Anyone holding permanent residency or citizenship immediately before this Appendix comes into effect retains that permanent residency or citizenship while this Appendix is in effect.

191. Acquisition of residency

(G: 82) Section 191 has been added by the Third Constitutional Amendment, 2024.

(1) An individual acquires residency in the Republic—
  (a) when their application for residency is approved; or
  (b) when they accept an invitation to become a resident.

(2) Anyone may submit an application for permanent residency. The Minister of the Interior must designate a public channel, which must be easy for the international public to access and utilise, to facilitate such submissions.

(3) An application for permanent residency may be submitted—
  (a) through the channel designated by the Minister of the Interior; or
  (b) directly to an official or institution specified in Subsection (4).

(4) The following officials or institutions have the power to approve applications for residency and to invite individuals to become residents:
  (a) Any member of the Cabinet.
  (b) A Private Member acting with the assent of another Private Member.
  (c) A local government official or institution authorised to do so by the Cabinet.
  (d) Any other institution authorised to do by the Cabinet.

(5) Any official or institution with the power to approve applications for residency may request further particulars from the applicant if this would assist in the determination of the application.

(6) Residents have the same rights, benefits, and duties as permanent residents, subject to any restrictions necessary to ensure national security or public safety.

192. Acquisition of permanent residency

(G: 83) Section 192 has been revised by the Third Constitutional Amendment, 2024.

(1) An individual acquires permanent residency—

(a) when they have been a resident for seven days; or
(b) when they have lost their citizenship in terms of Section 191.

(2) The Minister of the Interior must convert the status of individuals holding residency to that of permanent residency without unreasonable delay once the requirement in Subsection (1)(a) has been met.

193. Acquisition of citizenship

(1) A permanent resident acquires citizenship when citizenship is conferred on them in accordance with this Section.

(2) Any Cabinet member may propose that citizenship be conferred on a permanent resident. The Cabinet must decide without unreasonable delay whether to assent to such a proposal in accordance with Subsection (3).

(3) The Cabinet must assent to a proposal to confer citizenship on a permanent resident if it determines that the permanent resident—
(a) habitually or primarily exercises civil and political rights in the Republic;
(b) has demonstrated commitment and allegiance to the Republic; and
(c) has a good moral character.

(4) The Minister of the Interior must—
(a) regularly assess if any permanent residents have met the requirements for citizenship set out in Subsection (3); and
(b) ensure that the Cabinet considers the conferment of citizenship on a permanent resident promptly upon that permanent resident meeting the abovementioned requirements in the opinion of the Minister.

(5) Every permanent resident has the right to be informed in sufficient detail of their progress towards acquiring citizenship upon request. The Minister of the Interior must take appropriate measures to ensure that this right is fulfilled.

194. Loss of nationality

(1) An individual loses Cortesian nationality—
(a) when they renounce their status as a Cortesian national expressly or by necessary implication;
(b) when the National Forum, after determining that this is in the public interest, revokes their status as a Cortesian national

through a resolution adopted with the support of a majority of its members;

(c) when a court convicts them for a criminal offence and orders their status as a Cortesian national to be revoked as punishment in terms of a law prescribing the loss of Cortesian nationality as a competent punishment for that offence; or

(d) when they hold a prohibited membership or nationality in terms of Section 199(1) and have not renounced that membership or nationality within seven days of the date on which the prohibition of holding such membership or nationality commenced.

(2) Anyone who has lost their Cortesian nationality has the right to be promptly informed about this occurrence and the reasons for it.

195. Loss of residency

(G: 84) Section 195 has been added by the Third Constitutional Amendment, 2024.

(1) Any official or institution specified in Section 191(4) may, with the concurrence of another such official or institution in a different sphere of government, revoke an individual's residency within seven days of that individual becoming a resident. The National Forum and any affected local governments must be informed of, and given a reasonable opportunity to consider, such a revocation before it comes into effect.

(2) Within 48 hours of the National Forum being informed of a proposed revocation in terms of Subsection (1), including after the revocation has come into effect, the revocation may be challenged by—

(a) a motion with the support of two Members of the Forum; or

(b) an affected local government.

(3) If a revocation is challenged in terms of Subsection (2)—

(a) the National Forum must decide without unreasonable delay whether to confirm the revocation; and

(b) the President may suspend the revocation until after the National Forum has decided whether to confirm it.

(4) Anyone who has lost their residency has the right to be promptly informed about this occurrence and the reasons for it.

196. Loss of citizenship

(1) An individual loses citizenship—

(a) when they have been absent from the Republic for 30 days without providing any notice thereof; or

(b) when their citizenship is revoked in terms of Subsection (4).

(2) The notice contemplated in Subsection (1)(a) may be provided by the individual concerned or by someone in their stead.

(3) The President, the Vice President, or the Minister of the Interior may choose to condone an individual's absence that would result in their loss of citizenship pursuant to Subsection (1)(a). If such condonation is granted, the individual concerned will not lose citizenship as a result of that absence. However, notwithstanding such condonation, the individual concerned will lose citizenship if they are absent for a further 14 days without providing any notice thereof, and no further condonation may be granted from this point.

(4) The Cabinet may revoke an individual's citizenship, but only after determining—

(a) that the individual neither habitually nor primarily exercises civil rights in the Republic; and

(b) that the individual demonstrably intends not to resume their habitual or primary exercise of civil and political rights in the Republic in the foreseeable future.

(5) Whenever the Cabinet has decided to revoke an individual's citizenship, the Minister of the Interior must promptly record this decision, and the reasons for it, in the National Forum.

(6) A decision by the Cabinet to revoke an individual's citizenship only takes effect if the National Forum—

(a) has not initiated voting in terms of Subsection (6) within 24 hours of that decision; or

(b) has initiated voting in terms of Subsection (6), at the close of which the National Forum did not override the decision of the Cabinet.

(7) At the instance of a motion with the support of two Members of the Forum, any Member of the Forum may, within 24 hours of a decision by the Cabinet to revoke an individual's citizenship, open voting in the National Forum on whether to override that decision. Such voting must comply with the following:

(a) Only two choices, one to support the override and one to oppose the override, must be available in the voting.

(b) The procedure for single-winner standard voting must be used.

(c) Voting must last for 24 hours.

(8) A decision by the Cabinet to revoke an individual's citizenship is vacated if, on conclusion of voting in the National Forum on whether to override

that decision, a majority of the votes cast by Members of the Forum support the override.

(9) Anyone who has lost their citizenship—

(a) has the right to be promptly informed about this occurrence and the reasons for it;

(b) immediately acquires permanent residency.

197. Restoration of residency

(G: 85) Section 197 has been added by the Third Constitutional Amendment, 2024.

An individual who has previously lost their Cortesian nationality may restore their status as a resident by acquiring residency in terms of Section 186.

198. Restoration of citizenship

A permanent resident who has previously lost their citizenship may restore their status as a citizen by acquiring citizenship in terms of Section 193.

199. Multiple nationality

(1) Cortesian nationals are prohibited from holding membership in a particular foreign group or from holding nationality in a particular state if —

(a) the Republic has declared war against that group or that state; or

(b) the National Forum has put such a prohibition in place through a resolution adopted with the support of at least two-thirds of the votes cast by its members.

(2) A prohibition contemplated in Subsection (1) may be lifted by the National Forum through a resolution adopted with support of a majority of the votes cast by its members.

(3) Whenever a prohibition contemplated in Subsection (1) is in place, the President, or a Cabinet member designated by them, must—

(a) promptly inform the Nation in sufficient detail, through an announcement, of the nature, scope, and consequences of the prohibition; and

(b) take any additional measures which are appropriate in the circumstances to promptly notify all Cortesian nationals holding a prohibited membership or nationality at the time such a prohibition is put in place that they must renounce that membership or nationality in order continue holding Cortesian nationality.

(4) Subject to the rest of this Section, nothing in this Appendix precludes a Cortesian national from holding nationality in other states.

200. Nationality records

(G: 86) Section 200 has been revised by the Third Constitutional Amendment, 2024.

(1) The Minister of the Interior must maintain publicly accessible records of every instance where—
  (a) residency was acquired;
  (b) permanent residency was acquired;
  (c) citizenship was acquired;
  (d) residency was lost;
  (e) permanent residency was lost; or
  (f) citizenship was lost.

(2) Where possible, the Minister of the Interior must list in the records contemplated in Subsection (1)—
  (a) the date of each recorded instance of a change in a person's nationality status; and
  (b) the reasons for—
    (i) each loss of residency;
    (ii) each loss of permanent residency; and
    (iii) each loss of citizenship.

201. Judicial review of decisions concerning nationality

(1) Anyone whose rights or interests with respect to Cortesian nationality have been adversely affected by a decision taken in terms of this Appendix has the right to apply to a competent court for review of that decision.

(2) A court may suspend the operation of a decision taken in terms of this Appendix until it has decided an application before it for a review of that decision if—
  (a) this is in the interests of justice; and
  (b) the application has a reasonable prospect of success.

END OF APPENDIX I

APPENDIX II

NATIONAL FLAGS

202. Template of flags

(1) The design of each flag is contained in a rectangle whose length is one and two-thirds the size of its width.

(2) Each flag is composed of—

(a) a rectangular stripe across its upper half;

(b) a rectangular stripe across its lower half; and

(c) a circle overlying the stripes—

(i) centred on the point three-tenths of the length of the flag's equator from the flagpole end; and

(ii) with a radius that is one-fifth the size of the flag's width.

(3) In addition to Subsection (2)—

(a) the peacetime flag has a ring around the circle described in Subsection (2)(c) whose width is one-sixth the size of the circle's radius; and

(b) the wartime flag has a ring around the upper half of the circle described in Subsection (2)(c) whose width is one-sixth the size of the circle's radius.

203. Design of flags

(1) The components of the template described in Section 202 have the following colours when composing the peacetime flag:

(a) The stripe described in Section 202(2)(a) is sky blue.

(b) The stripe described in Section 202 (2)(b) is navy blue.

(c) The circle described in Section 202 (2)(c) has a white upper half and a powder blue lower half.

(d) The ring described in Section 202 (3)(a) has a powder blue upper half and a sky blue lower half.

(2) The components of the template described in Section 202have the following colours when composing the wartime flag:

(a) The stripe described in Section 202 (2)(a) is navy blue.

(b) The stripe described in Section 202 (2)(b) is sky blue.

(c) The circle described in Section 202 (2)(c) has a white upper half and a powder blue lower half.

(d) The ring described in Section 202 (3)(b) is powder blue.

204. Colours of flags

(1) The sky blue used in each flag is represented by—

(a) hexadecimal colour code #3399ff; and

(b) RGB triplet 51, 153, 255.

(2) The navy blue used in each flag is represented by—

(a) hexadecimal colour code #030122; and

(b) RGB triplet 3, 1, 34.

(3) The powder blue used in each flag is represented by—

(a) hexadecimal colour code #8bcfff; and

(b) RGB triplet 139, 207, 255.

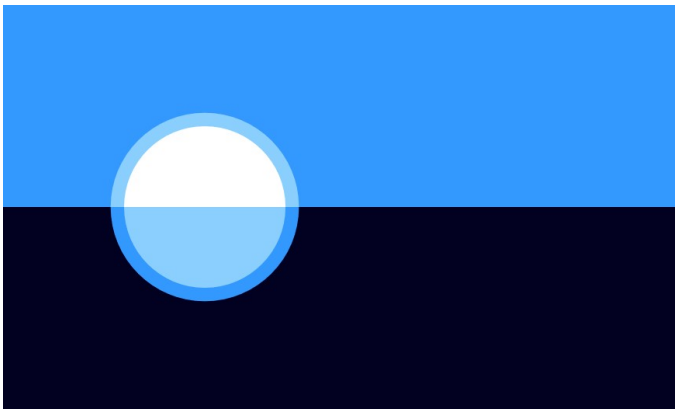
(4) The white used in each flag is represented by—

(a) hexadecimal colour code #ffffff; and

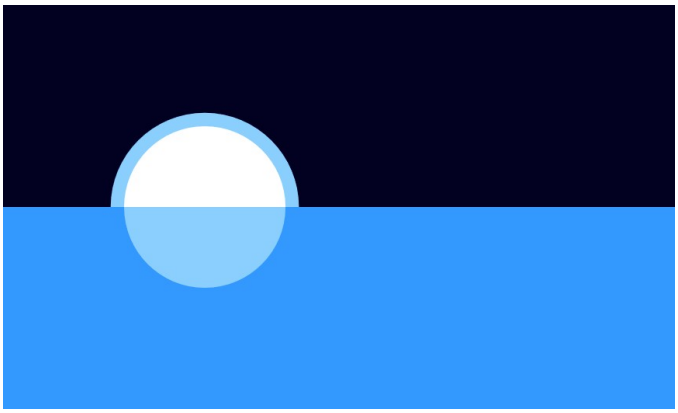
(b) RGB triplet 255, 255, 255.

205. Depiction of flags

The peacetime flag is depicted on the left side below, and the wartime flag is depicted on the right side below.



Peacetime flag



Wartime flag

END OF APPENDIX II

APPENDIX III

AMENDING THIS CONSTITUTION

206. Denotation of revisions

(1) When any revision to the title of an Article, the heading of a Section or the text of a Subsection, Paragraph, or Subparagraph is made, a guide clause must be inserted at the location of the revision, denoting—

(a) that a revision has been made of the applicable title, heading, or text; and

(b) the title of the constitutional amendment from which the revision has been made.

(2) The locations at which guide clauses must be inserted, pursuant to Subsection (1), are—

(a) directly below the subtitle of the Article when the revision concerns the title of an Article;

(b) directly below the heading when the revision concerns the heading of a Section; and

(c) directly above the text when the revision concerns the text of a Subsection, Paragraph, or Subparagraph.

207. Denotation of additions

(1) When a new Article, Section, Subsection, Paragraph, or Subparagraph is added to this Constitution, a guide clause must be inserted at the location of the addition, denoting—

(a) that the applicable Article, Section, Subsection, Paragraph, or Subparagraph has been added; and

(b) the title of the constitutional amendment from which the addition has been made.

(2) The locations at which guide clauses must be inserted, pursuant to Subsection (1), are—

(a) directly below the subtitle of the Article when an Article is added;

(b) directly below the heading of the Section when a Section is added; and

(c) directly above the text of the Subsection, Paragraph, or Subparagraphs when such a provision is added.

208. Enactment and denotation of repeals

(1) When an Article is repealed—

(a) all the provisions within it must be removed;

(b) its title and numbering remains;

(c) its subtitle must be replaced with "[Repealed]"; and

(d) no other insertion is necessary to denote the repeal.

(2) When a Section is repealed—

(a) any provisions within it must be removed;

(b) its numbering remains;

(c) its heading must be replaced with "[Repealed]"; and

(d) a guide clause must be inserted directly below the Section, denoting—

(i) that the Section has been repealed; and

(ii) the title given to the constitutional amendment from which the repeal has been enacted.

(3) When a Subsection, Paragraph, or Subparagraph is repealed—

(a) its text must be replaced with "[Repealed]";

(b) a guide clause must be inserted directly above it, denoting—

(i) that the Subsection, Paragraph, or Subparagraph has been repealed; and

(ii) the title given to the constitutional amendment from which the repeal has been enacted.

209. Amendments not requiring denotation

(1) The numbering in this Constitution must remain in a consecutive sequence. Any revisions of the numbering scheme to achieve this incidental to an amendment do not require denotation.

(2) When a guide clause denoting an amendment necessarily implies further amendments, no denotation is necessary for those implied amendments.

END OF APPENDIX III

APPENDIX IV

AFFIRMATIONS OF OFFICE

210. Affirmation of the President

A person elected to the office of President must make the following affirmation before assuming office:

"I, [name], do solemnly pledge that I will faithfully fulfil the office of President of the Republic of Cortesia Del Mar with conscience and diligence. To this end, I promise to serve the Republic and its best interests with unwavering loyalty, and will, to the best of my ability, do all that is necessary and proper to preserve the national unity, ensure fair governance, advance the welfare of its people, safeguard its constitutional order, and uphold its laws."

211. Affirmation of the Vice President

A person elected to the office of Vice President must make the following affirmation before assuming office:

"I, [name], do solemnly pledge that I will faithfully fulfil the office of Vice President of the Republic of Cortesia Del Mar with conscience and diligence. To this end, I promise to serve the Republic and its best interests with unwavering loyalty, and will, to the best of my ability, do all that is necessary and proper to preserve the national unity, advance the welfare of its people, safeguard its constitutional order, and uphold its laws."

212. Affirmation of the Minister of Foreign Affairs

A person appointed to the office of Minister of Foreign Affairs must make the following affirmation before assuming office:

"I, [name], do solemnly pledge that I will faithfully fulfil the office of Minister of Foreign Affairs with conscience and diligence. To this end, I promise to serve the Republic and its best interests with unwavering loyalty, and will, to the best of my ability, do all that is necessary and proper to preserve its peace, secure friendly relations with other states, advance the welfare of its people, safeguard its constitutional order, and uphold its laws."

213. Affirmation of the Minister of Security

A person appointed to the office of Minister of Security must make the following affirmation before assuming office:

"I, [name], do solemnly pledge that I will faithfully fulfil the office of Minister of Security with conscience and diligence. To this end, I promise to serve the Republic and its best interests with unwavering loyalty, and will, to the best of

my ability, do all that is necessary and proper to avert threats to its life, ensure the continued safety of all its people, advance the welfare of its people, safeguard its constitutional order, and uphold its laws."

214. Affirmation of the Minister of the Interior

A person appointed to the office of Minister of the Interior must make the following affirmation before assuming office:

"I, [name], do solemnly pledge that I will faithfully fulfil the office of Minister of the Interior with conscience and diligence. To this end, I promise to serve the Republic and its best interests with unwavering loyalty, and will, to the best of my ability, do all that is necessary and proper to secure equitable access to its government, advance the welfare of its people, safeguard its constitutional order, and uphold its laws."

215. [Repealed]

(G: 87) Section 215 has been repealed by the Fourth Constitutional Amendment, 2025.

216. Affirmation of Members of the Forum

A person elected to the office of Member of the Forum must make the following affirmation before assuming office:

"I, [name], do solemnly pledge that I will faithfully fulfil the office of Member of the Forum with conscience and diligence. To this end, I promise to serve the Republic and its best interests with unwavering loyalty, and will, to the best of my ability, participate in the making of laws to advance the welfare of its people, progress the Nation, and further the constitutional vision."

217. Affirmation of judges

A person elected or appointed to judicial office must make the following affirmation before assuming office:

"I, [name], do solemnly pledge that I will faithfully fulfil my duties as a judge with conscience and diligence. To this end, I promise to serve the Republic and its best interests with unwavering loyalty, and will, to the best of my ability, administer justice impartially to all before me, recusing myself when I am unable to. I affirm that I will do so subject to none but the Constitution and other laws, which I will apply without fear or favour."

218. Affirmation of acting office-holders

Anyone required by this Constitution to make an affirmation in terms of this Appendix before assuming an office in an acting capacity must make the same affirmation a person appointed to that office in the ordinary way would be required to make.

END OF APPENDIX IV